

SOLICITATION, OFFER, AND AWARD		1. This Contract is a Rated Order under the Defense Priorities and Allocations System (DPAS) - Code of Federal Regulations - at 15 CFR 700.		RATING		PAGE OF PAGES 1 41	
2. CONTRACT NUMBER		3. SOLICITATION NUMBER USCA26R0001		4. TYPE OF SOLICITATION ☐ SEALED BID (IFB) INVITATION FOR BID ☒ NEGOTIATED (RFP) REQUEST FOR PROPOSAL		5. DATE ISSUED 02/18/2026	
7. ISSUED BY Procurement Management Division Administrative Office of the United States Courts One Columbus Circle, N.E. Suite 3-250 Washington, DC 20544-0001		CODE PMD		6. REQUISITION/PURCHASE NUMBER See Lines			
				8. ADDRESS OFFER TO (If other than Item 7)			

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".

SOLICITATION

9. Sealed offers in original and <u>1</u> copies for furnishing the supplies or services in the Schedule will be received at the place specified in item 8, or if hand carried, in the depository located in <u>N/A. Email submission only</u> until <u>(Hour)</u> local time <u>(Date)</u>			
CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision No. 3-100. All offers are subject to all terms and conditions contained in this solicitation.			
10. FOR INFORMATION CALL:		A. NAME AJ M. Lee	
		B. TELEPHONE (NO COLLECT CALLS)	
		AREA CODE 202	NUMBER 502-2625
		EXTENSION	
		C. E-MAIL ADDRESS aj_lee@ao.uscourts.gov	

11. TABLE OF CONTENTS

(X)	SEC.	DESCRIPTION	PAGE(S)	(X)	SEC.	DESCRIPTION	PAGE(S)
PART I - THE SCHEDULE				PART II - CONTRACT CLAUSES			
X	A	SOLICITATION/CONTRACT FORM	1	X	I	CONTRACT CLAUSES	24-33
X	B	SUPPLIES OR SERVICES AND PRICES/COSTS	4-7	PART III - LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACHMENTS			
X	C	DESCRIPTION/SPECIFICATIONS/WORK STATEMENT	7-16	X	J	LIST OF ATTACHMENTS	33
X	D	PACKAGING AND MARKING	16-17	PART IV - REPRESENTATIONS AND INSTRUCTIONS			
X	E	INSPECTION AND ACCEPTANCE	17	X	K	REPRESENTATIONS CERTIFICATIONS AND OTHER STATEMENTS OF OFFERORS	33-37
X	F	DELIVERIES OR PERFORMANCE	17-18	X	L	INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS	37-40
X	G	CONTRACT ADMINISTRATION DATA	18-20	X	M	EVALUATION FACTORS FOR AWARD	40-42
X	H	SPECIAL CONTRACT REQUIREMENTS	20-24				

OFFER (Must be fully completed by offeror)

NOTE: Item 12 does not apply if the solicitation includes a minimum offer acceptance period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the set opposite each item, delivered at the designated point(s), within the time specified in the schedule.				
13. DISCOUNT FOR PROMPT PAYMENT		10 CALENDAR DAYS(%) 0.00 %	20 CALENDAR DAYS(%) 0.00 %	30 CALENDAR DAYS(%) 0.00 %
		0 CALENDAR DAYS(%) 0.00 %		
14. ACKNOWLEDGEMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):		AMENDMENT NUMBER	DATE	AMENDMENT NUMBER
15A. NAME AND ADDRESS OF OFFEROR		CODE	FACILITY	16. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or Print)
15B. TELEPHONE NUMBER		15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.		17. SIGNATURE
AREA CODE	NUMBER			
				18. OFFER DATE

AWARD (To be completed by Government)

19. ACCEPTED AS TO ITEMS NUMBERED		20. AMOUNT		21. ACCOUNTING AND APPROPRIATION	
22. AUTHORITY FOR USING OTHER THAN FULL OPEN COMPETITION: ☐ 10 U.S.C. 3204(a) ☐ 41 U.S.C. 3304(a) ()				23. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)	
				ITEM	
24. ADMINISTERED BY (if other than Item 7) Accounting Division, DAS-BAPO-ACC Administrative Office of the United States Courts One Columbus Circle, N.E., Suite 5-300 Washington, DC 20544-0001				25. PAYMENT WILL BE MADE BY	
CODE AFSD				CODE	
26. NAME OF CONTRACTING OFFICER (Type or print) Vanessa Jackson				27. UNITED STATES OF AMERICA (Signature of Contracting Officer)	
				28. AWARD DATE	

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.

Table of Contents

<u>Section</u>	<u>Description</u>	<u>Page Number</u>
B	Supplies or Services and Prices/Costs.....	5
	B.1 Equipment and Services.....	
	B-2 Guaranteed Minimum and Maximum Ordering.....	
D	Packaging and Marking.....	
	2-45 Packaging and Marking.....	
	D-1 Order Delivery.....	
E	Inspection and Acceptance.....	11
	2-10 Responsibility for Products.....	
	2-5A Inspection of Products.....	
	2-5B Inspection of Services.....	
F	Deliveries or Performance.....	11
	2-25A Delivery Terms and Contractor's Responsibilities.....	
	2-35 F.o.b. Destination, Within Judiciary's Premises.....	
	2-60 Stop-Work Order.....	
	7-200 Judiciary Delay of Work.....	
	F-1 Deliverables.....	
G	Contract Administration Data.....	
	3-305 Payment by Electronic Funds Transfer-System for Award Management (SAM) Registration.....	
	7-1 Contract Administration.....	
	7-10 Contractor Representative.....	
	7-125 Invoices.....	
	G-1 Ordering Instructions.....	
	G-3 Certification Review.....	
H	Special Contract Requirements.....	
	1-1 Employment by the Government.....	
	7-55 Contractor Use of Judiciary Networks.....	
	2-65 Key Personnel.....	
	H-1 Travel.....	
	H-2 Key Personnel Requirements.....	
I	Contract Clauses.....	
	1-10 Gratuities or Gifts.....	
	1-15 Disclosure of Contractor Information to the Public.....	
	1-5 Conflict of Interest.....	
	2-130 Energy Efficiency in Energy-Consuming Products.....	
	2-140 Judiciary IT Security Standards.....	
	2-20A Incorporation of Warranty.....	
	2-50 Continuity of Services.....	
	2-55 Privacy or Security Safeguards.....	
	3-105 Audit and Records.....	
	3-205 Protest after Award.....	
	3-25 Protecting the Judiciary's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment.....	
	3-300 Registration in the System for Award Management (SAM) (OCT 2023).....	
	3-35 Covenant Against Contingent Fees.....	
	3-40 Restrictions on Subcontractor Sales to the Judiciary.....	
	3-45 Anti-Kickback Procedures.....	
	3-50 Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity.....	
	3-55 Price or Fee Adjustment for Illegal or Improper Activity.....	
	4-25 Indefinite Quantity.....	
	4-5 Ordering.....	
	5-20 Records Ownership.....	
	5-30 Authorization and Consent.....	
	6-110 Deferred Ordering of Technical Data or Computer Software.....	
	6-40 Federal, State, and Local Taxes.....	
	6-60 Rights in Data - General.....	

	6-85 Commercial Computer Software License.....	
	6-90 Notice and Assistance Regarding Patent and Copyright Infringement.....	
	6-95 Patent Indemnity.....	
	7-100A Limitation of Liability (Products).....	
	7-100B Limitation of Liability (Services).....	
	7-110 Bankruptcy.....	
	7-130 Interest (Prompt Payment).....	
	7-135 Payments.....	
	7-140 Discounts for Prompt Payment.....	
	7-15 Observance of Regulations/Standards of Conduct.....	
	7-150 Extras.....	
	7-160 Limitation on Withholding of Payments.....	
	7-175 Assignment of Claims.....	
	7-185 Changes.....	
	7-195 Excusable Delays.....	
	7-20 Security Requirements.....	
	7-205 Payment for Judiciary Holidays (OCT 2023).....	
	7-210 Payment for Emergency Closures.....	
	7-215 Notification of Ownership Changes.....	
	7-220 Termination for Convenience of the Judiciary (Fixed Price).....	
	7-230 Termination for Default - Fixed-Price Products and Services.....	
	7-235 Disputes.....	
	7-25 Indemnification.....	
	7-30 Public Use of the Name of the Federal Judiciary.....	
	7-35 Disclosure or Use of Information.....	
	7-40 Judiciary-Contractor Relationships.....	
	7-65 Protection of Judiciary Buildings, Equipment, and Vegetation.....	
	7-70 Judiciary Property Furnished "As Is".....	
	7-80 Competition in Subcontracting.....	
	7-85 Examination of Records.....	
	B-20 Computer Generated Forms.....	
	2-57 Protecting, Reporting, and Responding to Incidents Involving Sensitive Information (JUN 2024).....	
	2-90A Option for Increased Quantity.....	
	2-90C Option to Extend Services.....	
	2-90D Option to Extend the Term of the Contract.....	
	3-120A Order of Precedence (Deviation).....	
	4-10 Order Limitations.....	
	6-65 Rights in Data-Special Works.....	
	7-115 Availability of Funds.....	
	7-75 Subcontracts.....	
	B-5 Clauses Incorporated by Reference.....	
J	List of Attachments.....	30
K	Representations, Certifications and Other Statements of Offerors or Respondents.....	
	3-15 Place of Performance.....	
	3-130 Authorized Negotiators.....	
	3-20 Certification Regarding Debarment, Suspension, Proposed Debarment, and Other Responsibility Matters.....	
	3-5 Taxpayer Identification and Other Offeror Information.....	
	6-50 Representation of Rights in Data.....	
L	Instructions, Conditions and Notices to Offerors or Respondents.....	
	3-210 Protests.....	
	3-85 Explanation to Prospective Offerors.....	
	3-95 Preparation of Offers.....	
	7-60 Judiciary Furnished Property or Services.....	
	3-100 Instructions to Offerors.....	
	4-1 Type of Contract.....	
	B-1 Solicitation Provisions Incorporated by Reference.....	
	L-1 Instructions to Offerors.....	
M	Evaluation Factors for Award.....	

2-85A Evaluation Inclusive of Options.....
3-70 Determination of Responsibility.....
M-1 Evaluation Criteria.....

DRAFT

Section B - Supplies or Services and Prices/Costs

Number	Supplies or Services	Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
0001	URINALYSIS SUPPLIES Indefinite Delivery/ Indefinite Quantity- Judiciary-wide PSC: 6632	1.000000	LT		
	Delivery Schedule:				
	<u>Delivery Number</u> 1	<u>Quantity</u> 1.000000			
Period of Performance: 04/15/2026 - 04/14/2033					
Description: REAGENTS: Delivery Orders under this CLIN are Firm Fixed Price (FFP) orders for reagents in accordance with Attachment 1 - Pricing sheet. REAGENTS: Delivery Orders under this CLIN are Firm Fixed Price (FFP) orders for reagents in accordance with Attachment 1 - Pricing sheet. Provide all equipment, reagents, supplies, consumables, a data management program, training, key personnel, and related services required for U.S. Probation and Pretrial Services Offices to operate instrumented urine screening facilities nationwide, as specified in SOW Section C.3.2. All items and services are inclusive and not separately priced. Seven (7) year ordering period.					
Reference Line: PAD250019 - 0001					
Pricing Options: Base					
Number	Supplies or Services	Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
0002	DRUG TESTING EQUIPMENT Indefinite Delivery/ Indefinite Quantity- Judiciary-wide PSC: 6515	1.000000	EA		
	Delivery Schedule:				
	<u>Delivery Number</u> 1	<u>Quantity</u> 1.000000			
Period of Performance: 04/15/2026 - 04/14/2033					
Description: Opening a NEW Onsite Drug Laboratory: NEW installation in accordance with C.3.3.1 Delivery Orders under this IDIQ are Firm Fixed Price (FFP) in accordance with Attachment 1 - Pricing sheet. Provide all equipment, reagents, supplies, consumables, a data management program, training, key personnel, and related services required for U.S. Probation and Pretrial Services Offices to operate instrumented urine screening facilities nationwide, as specified in SOW Section C.3.2. All items and services are inclusive and not separately priced. Seven (7) year ordering period.					
Reference Line: PAD250019 - 0001					
Pricing Options: Base					

Number	Supplies or Services	Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
0003	DRUG TESTING EQUIPMENT Indefinite Delivery/ Indefinite Quantity- Judiciary-wide PSC: 6515	1.000000	EA		
Delivery Schedule: <u>Delivery Number</u> <u>Quantity</u> 1 1.000000					
Period of Performance: 04/15/2026 - 04/14/2033					
Description: Moving or Relocating equipment and services for an Onsite Drug Laboratory in accordance with SOW Section C.3.3.2. Delivery Orders under this IDIQ are Firm Fixed Price (FFP) in accordance with Attachment 1 - Pricing sheet. Seven (7) year ordering period.					
Reference Line: PAD250019 - 0001					
Pricing Options: Base					
Number	Supplies or Services	Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
0004	DRUG TESTING EQUIPMENT Indefinite Delivery/ Indefinite Quantity- Judiciary-wide PSC: 6515	1.000000	EA		
Delivery Schedule: <u>Delivery Number</u> <u>Quantity</u> 1 1.000000					
Period of Performance: 04/15/2026 - 04/14/2033					
Description: CLOSING an Onsite Drug Laboratory and the removal of equipment in accordance with SOW Section 3.3.3. Delivery Orders under this IDIQ are Firm Fixed Price (FFP) in accordance with Attachment 1 - Pricing sheet. Seven (7) year ordering period.					
Reference Line: PAD250019 - 0001					
Pricing Options: Base					
Number	Supplies or Services	Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
0005	URINALYSIS SUPPLIES	1.000000	EA		

Number	Supplies or Services	Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
	Indefinite Delivery/ Indefinite Quantity- Judiciary-wide PSC:				
	Delivery Schedule:				
	Delivery Number 1	Quantity 1.000000			
Period of Performance: 04/15/2026 - 04/14/2033					
Description: IDIQ Minimum Guarantee: The minimum guarantee of this IDIQ is \$750.00, which will represent the equipment ordered by the courts and will be obligated against the IDIQ at time of award. As task orders are fulfilled by the individual courts, the minimum guaranteed obligation will be de-obligated once enough orders are issued by the individual courts to meet the minimum guarantee.					
Reference Line: PAD250019 - 0001					
Pricing Options: Base					
Number	Supplies or Services	Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
1001	URINALYSIS SUPPLIES Indefinite Delivery/ Indefinite Quantity- Judiciary-wide PSC: 6632	0.000000	LT		
	Delivery Schedule:				
	Delivery Number 1	Quantity 0.000000			
Period of Performance: 04/15/2033 - 04/14/2036					
Description: REAGENTS - Option 1: Delivery Orders under this CLIN are Firm Fixed Price (FFP) orders for reagents in accordance with Attachment 1 - Pricing sheet. REAGENTS: Delivery Orders under this CLIN are Firm Fixed Price (FFP) orders for reagents in accordance with Attachment 1 - Pricing sheet. Provide all equipment, reagents, supplies, consumables, a data management program, training, key personnel, and related services required for U.S. Probation and Pretrial Services Offices to operate instrumented urine screening facilities nationwide, as specified in SOW Section C.3.2. All items and services are inclusive and not separately priced.					
Three (3) Year Optional Ordering Period (2-90D)					
Reference Line: PAD260003 - 0001					
Number	Supplies or Services	Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
1002	URINALYSIS SUPPLIES	1.000000	LT		

Number	Supplies or Services	Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)				
	Indefinite Delivery/ Indefinite Quantity- Judiciary-wide PSC: 6515								
Delivery Schedule: <table border="1"> <thead> <tr> <th><u>Delivery Number</u></th><th><u>Quantity</u></th></tr> </thead> <tbody> <tr> <td>1</td><td>1.000000</td></tr> </tbody> </table>						<u>Delivery Number</u>	<u>Quantity</u>	1	1.000000
<u>Delivery Number</u>	<u>Quantity</u>								
1	1.000000								
Period of Performance: 04/15/2033 - 04/14/2036									
Description: Option 1: Opening a NEW Onsite Drug Laboratory: NEW installation in accordance with SOW Section C.3.3.1. Delivery Orders under this IDIQ are Firm Fixed Price (FFP) in accordance with Attachment 1 - Pricing sheet. Provide all equipment, reagents, supplies, consumables, a data management program, training, key personnel, and related services required for U.S. Probation and Pretrial Services Offices to operate instrumented urine screening facilities nationwide, as specified in SOW Section C.3.2. All items and services are inclusive and not separately priced. Three (3) Year Optional Ordering Period (2-90D)									
Reference Line: PAD260003 - 0001									
Number	Supplies or Services	Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)				
1003	URINALYSIS SUPPLIES Indefinite Delivery/ Indefinite Quantity- Judiciary-wide PSC: 6515	1.000000	LT						
Delivery Schedule: <table border="1"> <thead> <tr> <th><u>Delivery Number</u></th><th><u>Quantity</u></th></tr> </thead> <tbody> <tr> <td>1</td><td>1.000000</td></tr> </tbody> </table>						<u>Delivery Number</u>	<u>Quantity</u>	1	1.000000
<u>Delivery Number</u>	<u>Quantity</u>								
1	1.000000								
Period of Performance: 04/15/2033 - 04/14/2036									
Description: Option 1: Moving or Relocating equipment and services for an Onsite Drug Laboratory in accordance with SOW Section C.3.3.2. Delivery Orders under this IDIQ are Firm Fixed Price (FFP) in accordance with Attachment 1 - Pricing sheet. Three (3) Year Optional Ordering Period (2-90D)									
Reference Line: PAD260003 - 0001									
Pricing Options:									
Number	Supplies or Services	Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)				
1004	URINALYSIS SUPPLIES Indefinite Delivery/ Indefinite Quantity- Judiciary-wide	1.000000	LT						

Number	Supplies or Services	Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
	PSC: 6515				
	Delivery Schedule:				
	<u>Delivery Number</u> 1	<u>Quantity</u> 1.000000			
Period of Performance: 04/15/2033 - 04/14/2036					
Description: Option 1: CLOSING an Onsite Drug Laboratory and the removal of equipment in accordance with SOW Section 3.3.3. Delivery Orders under this IDIQ are Firm Fixed Price (FFP) in accordance with Attachment 1 - Pricing sheet. Three (3) Year Optional Ordering Period (2-90D)					
Reference Line: PAD260003 - 0001					
Pricing Options:					
Number	Supplies or Services	Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
2001	URINALYSIS SUPPLIES Indefinite Delivery/ Indefinite Quantity- Judiciary-wide PSC: 6515	1.000000	LT		
	Delivery Schedule:				
	<u>Delivery Number</u> 1	<u>Quantity</u> 1.000000			
Period of Performance: 04/15/2036 - 10/14/2036					
Description: REAGENTS - Option 2: Delivery Orders under this CLIN are Firm Fixed Price (FFP) orders for reagents in accordance with Attachment 1 - Pricing sheet. REAGENTS: Delivery Orders under this CLIN are Firm Fixed Price (FFP) orders for reagents in accordance with Attachment 1 - Pricing sheet. Provide all equipment, reagents, supplies, consumables, a data management program, training, key personnel, and related services required for U.S. Probation and Pretrial Services Offices to operate instrumented urine screening facilities nationwide, as specified in SOW Section C.3.2. All items and services are inclusive and not separately priced. Six (6) month Optional Ordering Period (2-90C)					
Reference Line: PAD260003 - 0001					
Pricing Options:					
Number	Supplies or Services	Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
2002	URINALYSIS SUPPLIES Indefinite Delivery/ Indefinite Quantity- Judiciary-wide PSC: 6515	1.000000	LT		
	Delivery Schedule:				

Number	Supplies or Services	Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
	Delivery Number 1	Quantity 1.000000			
Period of Performance: 04/15/2036 - 10/14/2036					
Description: Option 2: Opening a NEW Onsite Drug Laboratory: NEW installation in accordance with SOW Section C.3.3.1. Delivery Orders under this IDIQ are Firm Fixed Price (FFP) in accordance with Attachment 1 - Pricing sheet. Provide all equipment, reagents, supplies, consumables, a data management program, training, key personnel, and related services required for U.S. Probation and Pretrial Services Offices to operate instrumented urine screening facilities nationwide, as specified in SOW Section C.3.2. All items and services are inclusive and not separately priced. Six (6) month Optional Ordering Period (2-90C)					
Reference Line: PAD260003 - 0001					
Number	Supplies or Services	Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
2003	URINALYSIS SUPPLIES Indefinite Delivery/ Indefinite Quantity- Judiciary-wide PSC: 6515	1.000000	LT		
	Delivery Schedule:				
	Delivery Number 1	Quantity 1.000000			
Period of Performance: 04/15/2036 - 10/14/2036					
Description: Option 2: Opening a NEW Onsite Drug Laboratory: NEW installation in accordance with SOW Section C.3.3.1. Delivery Orders under this IDIQ are Firm Fixed Price (FFP) in accordance with Attachment 1 - Pricing sheet. Provide all equipment, reagents, supplies, consumables, a data management program, training, key personnel, and related services required for U.S. Probation and Pretrial Services Offices to operate instrumented urine screening facilities nationwide, as specified in SOW Section C.3.2. All items and services are inclusive and not separately priced. Six (6) month Optional Ordering Period (2-90C)					
Reference Line: PAD260003 - 0001					
Number	Supplies or Services	Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
2004	URINALYSIS SUPPLIES Indefinite Delivery/ Indefinite Quantity- Judiciary-wide PSC: 6515	1.000000	LT		
	Delivery Schedule:				
	Delivery Number 1	Quantity 1.000000			
Period of Performance: 04/15/2036 - 10/14/2036					
Description: Option 2: CLOSING an Onsite Drug Laboratory and the removal of equipment in accordance with SOW Section 3.3.3. Delivery Orders under this IDIQ are Firm Fixed Price (FFP) in accordance with Attachment 1 - Pricing sheet.					

Number	Supplies or Services	Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
Six (6) month Optional Ordering Period (2-90C)					
Reference Line: PAD260003 - 0001					
Pricing Options:					

B.1 Equipment and Services

Throughout the IDIQ, the per-reagent price listed in Attachment 1 – National Drug Lab Price Sheet shall include all costs for equipment, reagents, supplies, data management program support services, training, and consumables. Firm-fixed-price delivery orders will be issued for reagents, which shall encompass reagents, supplies, training, and consumables as defined in Section C.

B-2 Guaranteed Minimum and Maximum Ordering

Guaranteed Minimum Obligation The Government guarantees that it will issue task orders under this contract in the aggregate amount of \$750.00 during the ordering period. This guaranteed minimum is the Government's only guaranteed obligation under this contract.

Maximum Ordering Ceiling The total value of all task orders issued under this contract shall not exceed \$24,000,000.00 during the ordering period. The Government shall not be obligated to pay the Contractor for work performed in excess of this ceiling unless the Contracting Officer issues a written modification increasing the ceiling.

Not-To-Exceed Task Order Notification

NTE Notification Any task order shall be issued on a not-to-exceed basis shall state the NTE amount. The Contractor shall notify the Contracting Officer in writing when cumulative costs and obligations reach 80% of the NTE amount and shall not continue performance beyond the NTE without prior written authorization from the Contracting Officer.

Clause(s) Incorporated By Reference, see Clause B-5

Clause	Title	Fill-ins
2-45	Packaging and Marking	

D-1 Order Delivery

At award: All equipment shall be shipped in accordance with Attachment 5 - Installation Plan.

Post award: All other items shipped shall be delivered to the address listed on the individual order. Date of delivery and installation will be negotiated when the orders are issued.

Section E - Inspection and Acceptance

Clause(s) Incorporated By Reference, see Clause B-5

Clause	Title	Fill-ins
2-10	Responsibility for Products	
2-5A	Inspection of Products	
2-5B	Inspection of Services	

Section F - Deliveries or Performance

LINE NUMBER/ DELIVERY NUMBER	ADDRESS	CONTACT INFORMATION
0001/1	Program Administration Division	
0002/1	Administrative Office of the United States	
0003/1	Courts	
0004/1	One Columbus Circle, N.E.	
0005/1	Suite 4-300	
1001/1	Washington, DC 20544-0001	
1002/1		
1003/1		
1004/1		
2001/1		
2002/1		
2003/1		
2004/1		

PERIOD OF PERFORMANCE

ITEM	START	END
0001	04/15/2026	04/14/2033
0002	04/15/2026	04/14/2033
0003	04/15/2026	04/14/2033
0004	04/15/2026	04/14/2033
0005	04/15/2026	04/14/2033
1001	04/15/2033	04/14/2036
1002	04/15/2033	04/14/2036
1003	04/15/2033	04/14/2036
1004	04/15/2033	04/14/2036
2001	04/15/2036	10/14/2036
2002	04/15/2036	10/14/2036
2003	04/15/2036	10/14/2036
2004	04/15/2036	10/14/2036

Clause(s) Incorporated By Reference, see Clause B-5

Clause	Title	Fill-ins
2-25A	Delivery Terms and Contractor's Responsibilities	
2-35	F.o.b. Destination, Within Judiciary's Premises	
2-60	Stop-Work Order	
7-200	Judiciary Delay of Work	

F-1 Deliverables

The Contractor shall provide the deliverables in accordance with the schedule as follows:

Item	Section	Date due	To
Post Award Kick-Off	C.10	within 10 Days After the IDIQ Award	IDIQ CO and IDIQ COR

Contract Transition	C.9.1 Attachment 5	45 Business days After Award kick-off meeting	IDIQ CO and IDIQ COR
Certification of Drug Testing Equipment	C.5.3	Upon Delivery of equipment	On-Site Technical Representative
Training	C.7	At Time of Delivery	On-Site Technical Representative
Escalation Procedures	C.5.2.4	Upon IDIQ Award	IDIQ CO and COR
Material Safety Data Sheet	C.5.5.b	Upon Delivery of Reagents	Ordering CO
DRUG MANAGEMENT REPORTS: On-Site Drug Testing Financial Report	C.6.4.a.1	Quarterly: BY the 10th day of the start of each quarter	IDIQ CO and IDIQ COR
DRUG MANAGEMENT REPORTS: Laboratory Summary Report Breakdown per On-site Lab	C.6.4.a.2	BY THE 10th of Every Month	IDIQ CO and IDIQ COR
DRUG MANAGEMENT REPORTS: Cumulative Lab Summary Report	C.6.4.a.3	BY THE 10th of Every Month and Annually	IDIQ CO and IDIQ COR
DRUG MANAGEMENT REPORTS: Positive Results by Reagent Report	C.6.4.b.1	Within 5 days of request	IDIQ CO and IDIQ COR
DRUG MANAGEMENT REPORTS: Positive Trend Report	C.6.4.b.2	Within 5 days of request	IDIQ CO and IDIQ COR
DRUG MANAGEMENT REPORTS: District Trend Report	C.6.4.b.3	Within 5 days of request	IDIQ CO and IDIQ COR
DRUG MANAGEMENT REPORTS: Diluted Specimen Report	C.6.4.b.4	Within 5 days of request	IDIQ CO and IDIQ COR
DRUG MANAGEMENT REPORTS: Cumulative Tests per Reagent Report	C.6.4.b.1	Within 5 days of request	IDIQ CO and IDIQ COR
Deinstallation Plan	C.9.2	14 Days After a NEW Contract Award	IDIQ CO and IDIQ COR

Clause(s) Incorporated By Reference, see Clause B-5

Clause	Title	Fill-ins
3-305	Payment by Electronic Funds Transfer-System for Award Management (SAM) Registration	
7-1	Contract Administration	

7-10 Contractor Representative JAN 2003

(a) The contractor's representative to be contacted for all contract administration matters is as follows (*contractor complete the information*):

Name: _____
 Address: _____
 Telephone: _____
 Email: _____
 Fax: _____

(b) The contractor's representative shall act as the central point of contact with the judiciary, shall be responsible for all contract administration issues relative to this contract, and shall have full authority to act for and legally bind the contractor on all such issues. (END)

7-125 Invoices APR 2011

(a) Invoices shall be submitted to the address (physical or e-mail) specified in this contract and in accordance with any schedule for payments set forth elsewhere under this contract.

(b) The office that will make payments due under this contract will be designated in the contract at the time of contract award.

(c) To constitute a proper invoice, the billing document shall include the following information and/or attached documentation:

- (1) name of business concern and such business's Taxpayer Identification Number;
 - (2) period(s) covered by invoice and invoice date;
 - (3) purchase order or contract number or other authorization for delivery of property or services, e.g., delivery/task order number for orders under indefinite delivery contracts;
 - (4) for each line item - general description of product delivered or services rendered, measured unit, and associated price;
 - (5) any applicable payment discount terms;
 - (6) total amount billed;
 - (7) a subtotal of any and all fees or credits applied to the invoice;
 - (8) an amount due (if any) or credit balance;
 - (9) name (where practicable), title, phone number, fax number, and complete mailing address of the responsible official to whom payment is to be sent. The "remit to" address shall correspond to the remittance address in the contract;
 - (10) other substantiating documentation or information as required by the purchase/delivery/task order or contract;
 - (11) all follow-up invoices shall be marked "Duplicate of Original." Contractor questions regarding payment information or check identification shall be directed to the relevant paying authority specified in the contract.
- (end)

7-5 Contracting Officer's Representative APR 2013

(a) Upon award, a contracting officer's representative (COR) may be appointed by the contracting officer. The COR will be responsible for coordinating the technical aspects of this contract and inspecting products/services furnished hereunder; however, the COR will not be authorized to change any terms and conditions of the resultant contract, including price.

(b) The COR, if appointed, may be assigned one or more of the following responsibilities:

- (1) monitoring the contractor's performance under the contract to ensure compliance with technical requirements of the contract;
- (2) notifying the contracting officer immediately if performance is not proceeding satisfactorily;
- (3) ensuring that changes in work under the contract are not initiated before written authorization or modification is issued by the contracting officer;
- (4) providing the contracting officer a written request and justification for changes;
- (5) providing interpretations relative to the meaning of technical specifications and technical advice relative to contracting officer's written approvals, and
- (6) providing general technical guidance to the contractor within the scope of the contract and without constituting a change to the contract.

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(END)

G-1 Ordering Instructions

Orders shall be issued, by a warranted Judiciary Contracting Officer (CO). This IDIQ is Firm Fixed Price (FFP). Purchase card actions are not approved for use against this IDIQ. Orders shall be written and shall not be issued beyond the end-date of the period of performance of the BPA.

Orders will be issued based on the service areas described in Section C of the contract. The resultant Order(s) will contain the following information:

- (1) Date of Order, Contract Number and Order Number;
- (2) Statement of Work for services or list of requirements;
- (3) Incorporate Not Separately Priced (NSP) CLIN for Annual Maintenance
- (4) Period of Performance or delivery date, business hours, and delivery location;
- (5) Any other terms and conditions or requirements such as installation;
- (6) The total value and obligation total;
- (7) Invoicing Instructions

The Government shall not be charged separately for the equipment (i.e., analyzer(s), to include calibrators, controls, and consumables required to operate the analyzer, water system(s), data management system and any necessary hardware (central processing unit (CPU), monitor, printer, bar-code scanner, bar-code labels, and bar-code printer) and necessary software, including software licenses), quality control, and maintenance nor shall the government be charged for any delivery or installation costs, training, or travel.

Separate CLINs included for: 1) new laboratories opening post-award, 2) relocating/moving an established laboratory, or 3) closure of a laboratory prior to expiration of the IDIQ.

Any Order issued against this contract is binding when signed by the warranted Contracting Officer.

G-2 Period of Performance

FOR PLANNING PURPOSES THE DATES ARE ESTIMATED AND WILL REVISED AT AWARD.

The period of performance for this contract is a one seven (7) year ordering period with individual ordering years (for pricing purposes) from 04/15/2026 through 04/14/2033.

The optional period of performance for this contract is a one three-year ordering period with individual ordering years (for pricing purposes) from 04/15/2033 through 04/14/2036 and Clause 2-90D applies.

There is a six (6) month optional period of performance for this contract from 04/15/2036 through 10/14/2036 and Clause 2-90C applies.

Base ordering years are as follows:

Ordering Year 1: 04/15/26 to 04/14/27

Ordering Year 2: 04/15/27 to 04/14/28

Ordering Year 3: 04/15/28 to 04/14/29

Ordering Year 4: 04/15/29 to 04/14/30

Ordering Year 5: 04/15/30 to 04/14/31

Ordering Year 6: 04/15/31 to 04/14/32

Ordering Year 7: 04/15/32 to 04/14/33

CLAUSE 2-90D

Optional Ordering Period 8: 04/15/33 to 04/14/34

Optional Ordering Period 9: 04/15/34 to 04/14/35

Optional Ordering Period 10: 04/15/35 to 04/14/36

CLAUSE 2-90C

Optional Ordering Period 11: 04/15/36 to 10/14/36

G-3 Certification Review

Contractor Recertification Requirement The Contractor shall maintain active and valid authorization to resell, distribute, service, and support all drug#testing laboratory instruments, analyzers, and related equipment provided under this contract. The Contractor shall **recertify its authorized reseller status** with each original equipment manufacturer (OEM) no less than **annually**, or more frequently if required by the OEM. Proof of current reseller authorization shall be submitted to the Contracting Officer within **10 business days** of each recertification.

Equipment Certification Requirement The Contractor shall ensure that all instruments, analyzers, and related drug#testing equipment furnished under this contract are **fully certified, calibrated, and compliant** with the manufacturer's specifications and any applicable federal standards. The Contractor shall provide:

- **Annual equipment certification** for each unit in service
- **Calibration records**, maintenance logs, and OEM compliance documentation
- **Technician certification** demonstrating that personnel performing maintenance or calibration are trained and authorized by the OEM

All certification documentation must be submitted to the Contracting Officer or designated Government representative upon installation, annually thereafter, and upon request.

Failure to Maintain Certification Failure to maintain current reseller authorization or equipment certification may result in suspension of work, rejection of equipment, withholding of payment, or any other remedies available to the Government under the contract.

Clause(s) Incorporated By Reference, see Clause B-5

Clause	Title	Fill-ins
1-1	Employment by the Government	
7-55	Contractor Use of Judiciary Networks	

2-65 Key Personnel

APR 2013

(a) Individuals identified below as key personnel and accepted for this contract are expected to remain dedicated to this contract. However, in the event that it becomes necessary for the contractor to replace any of the individuals designated as key personnel, the contractor shall request such substitutions in accordance with this clause. Substitution of key personnel will be considered under the following circumstances only:

- (1) All substitutes shall have qualifications at least equal to those of the person being replaced.
- (2) All appointments of key personnel shall be approved in writing by the contracting officer, and no substitutions of such personnel shall be made without the advance written approval of the contracting officer.
- (3) Except as provided in paragraph (4) of this clause, at least 30 days (60 days if security clearance is required) in advance of the proposed substitution, all proposed substitutions of key personnel shall be submitted in writing to the contracting officer, including the information required in paragraph (5) of this provision.
- (4) The following identifies the requirements for situations where individuals proposed as key personnel become unavailable because of sudden illness, death or termination of employment. The contractor shall within 5 work days after the event, notify the contracting officer in writing of such unavailability. If the event happens after award, the contracting officer will determine if there is an immediate need for a temporary substitute and a continuing requirement for a permanent substitute for the key personnel position. The contracting officer will promptly inform the contractor of this determination. If the contracting officer specifies that a temporary substitute is required, the contractor shall as soon as is practical identify who will be performing the work as a temporary substitute. The temporary substitute will then start performance on a date mutually acceptable to the contracting officer and the contractor. Within 15 work days following the event, if the contracting officer specifies that a permanent substitute is required, the contractor shall submit, in writing, for the contracting officer's approval, the information required in (5) and (6) below, for a proposed permanent substitute for the unavailable individual. The approval process will be the same as (7) below.
- (5) Request for substitution of key personnel shall provide a detailed explanation of the circumstances necessitating substitution, a resume of the proposed substitute, and any other information requested by the contracting officer to make a determination as to the appropriateness of the proposed substitute's qualifications. All resumes shall be signed by the proposed substitute and his/her formal (per company accepted organizational chart) direct supervisor or higher authority.
- (6) As a minimum (or as otherwise specified in the solicitation), resumes shall include the following:
 - (a) name of person;
 - (b) functional responsibility;
 - (c) education (including, in reverse chronological order, colleges and/or technical schools attended (with dates), degree(s)/certification(s) received, major field(s) of study, and approximate number of total class hours);
 - (d) citizenship status;

(e) experience including, in reverse chronological order for up to ten years, area(s) or work in which a person is qualified, company and title of position, approximate starting and ending dates (month/year), concise descriptions of experience for each position held including specific experience related to the requirements of this contract; and

(f) certification that the information contained in the resume is correct and accurate (signature of key person and date signed, and signature of the supervisor or higher authority and date signed will be accepted as certification).

(7) The contracting officer will promptly notify the contractor in writing of his/her approval or disapproval of all requests for substitution of key personnel. All disapprovals will require re-submission of another proposed substitution within 15 days by the contractor.

(b) The following individuals are designated as key personnel under this contract: [Contracting Officer to add names upon contract award]

(END)

H-1 Travel

Travel will be required to fulfill the requirements of each task order issued under the IDIQ. The contractor shall not invoice the government separately for any travel to install equipment, reinstall equipment, or provide training at a Federal facility or off-site, contractor provided, facility. All travel costs shall be included in the fixed price-per-test for reagents for all contract line item numbers (CLINS).

In accordance with C.3.3, any travel to establish a new laboratory, move/relocate equipment, or closeout a laboratory and de-install equipment, at a Federal facility shall be incorporated into the fixed priced in accordance with Attachment 1 - National Drug Lab Price Sheet.

H-2 Key Personnel Requirements

The following positions are considered key personnel by the government under the contract. The contractor shall provide the key personnel identified herein.

The field customer service representative may also be the project manager if he/she meets the personnel qualifications indicated for both positions.

H.2.1 Project Manager

The Project Manager is to serve as the point-of-contact for the IDIQ COR and Contracting Officer (CO) and shall be able to manage all aspects of the contract, to include but not limited to any subcontracted supplies or services related to this IDIQ, and resolve any issues for the IDIQ and each order placed. The Project Manager shall: (a) be available to discuss and resolve all administrative and technical issues related to the administration and delivering the supplies and services under the terms of the contract, and (b) ensure that the contractor's local representative(s) adhere to the requirements of the contract. The Project Manager shall respond to telephonic or electronic communication from the IDIQ COR and/or CO within two (2) hours via similar communication means. If the Project Manager resides in a time zone other than the Eastern Standard Time Zone, then all telephonic or electronic communications received outside of the Project Managers local business hours shall be responded to within two (2) hours of the start of business for that time zone, which is defined as 8:30 AM for this contract.

The Project Managers qualifications are: 1) shall have a minimum of five (5) years' experience in managing projects similar in size and scope outlined in sections C.3, C.4, and C.5 in this statement of work; and 2) shall have a demonstrated knowledge and experience of drug testing for the drugs outlined in section C.5.5.

H.2.2 Field Customer Service Representative

The Field Customer Service Representative(s) shall serve as the contractor's technical representative who provides a single point-of-contact for all on-site laboratories for all questions and technical support. The Field Customer Service Representative(s) shall possess a minimum of two (2) years' experience in providing technical support to multiple test sites with demonstrated knowledge and experience of drug testing for the drugs outlined in section C.5.5.

H.2.3 Data Management System Designee

The designated Data Management System Point of Contact shall serve as the single point-of-contact for coordinating with the government regarding the PACTS Interface, assisting in resolving any results-transfer problems, coordinating training for laboratory staff, and providing technical assistance to each on-site laboratory and the Administrative Office as needed for troubleshooting and establishing connectivity with the contractor's system. The designated Data Management System Point of Contact shall possess a minimum of two (2) years' experience in providing technical support to multiple test sites with the demonstrated knowledge and experience of data management systems for drug testing. The identified individual may be a prime or subcontractor.

Clause(s) Incorporated By Reference, see Clause B-5

Clause	Title	Fill-ins
1-10	Gratuities or Gifts	
1-15	Disclosure of Contractor Information to the Public	
1-5	Conflict of Interest	
2-130	Energy Efficiency in Energy-Consuming Products	
2-140	Judiciary IT Security Standards	
2-20A	Incorporation of Warranty	
2-50	Continuity of Services	
2-55	Privacy or Security Safeguards	
3-105	Audit and Records	
3-205	Protest after Award	
3-25	Protecting the Judiciary's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment	
3-300	Registration in the System for Award Management (SAM) (OCT 2023)	
3-35	Covenant Against Contingent Fees	
3-40	Restrictions on Subcontractor Sales to the Judiciary	
3-45	Anti-Kickback Procedures	
3-50	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity	
3-55	Price or Fee Adjustment for Illegal or Improper Activity	
4-25	Indefinite Quantity	
4-5	Ordering	
5-20	Records Ownership	
5-30	Authorization and Consent	
6-110	Deferred Ordering of Technical Data or Computer Software	
6-40	Federal, State, and Local Taxes	
6-60	Rights in Data - General	

Clause	Title	Fill-ins
6-85	Commercial Computer Software License	
6-90	Notice and Assistance Regarding Patent and Copyright Infringement	
6-95	Patent Indemnity	
7-100A	Limitation of Liability (Products)	
7-100B	Limitation of Liability (Services)	
7-110	Bankruptcy	
7-130	Interest (Prompt Payment)	
7-135	Payments	
7-140	Discounts for Prompt Payment	
7-15	Observance of Regulations/Standards of Conduct	
7-150	Extras	
7-160	Limitation on Withholding of Payments	
7-175	Assignment of Claims	
7-185	Changes	
7-195	Excusable Delays	
7-20	Security Requirements	
7-205	Payment for Judiciary Holidays (OCT 2023)	
7-210	Payment for Emergency Closures	
7-215	Notification of Ownership Changes	
7-220	Termination for Convenience of the Judiciary (Fixed Price)	
7-230	Termination for Default - Fixed-Price Products and Services	
7-235	Disputes	
7-25	Indemnification	
7-30	Public Use of the Name of the Federal Judiciary	
7-35	Disclosure or Use of Information	
7-40	Judiciary-Contractor Relationships	
7-65	Protection of Judiciary Buildings, Equipment, and Vegetation	
7-70	Judiciary Property Furnished "As Is"	
7-80	Competition in Subcontracting	
7-85	Examination of Records	

Clause	Title	Fill-ins
B-20	Computer Generated Forms	

2-57 **Protecting, Reporting, and Responding to Incidents Involving Sensitive Information (JUN 2024)** JUL 2024

Protecting, Reporting, and Responding to Incident Involving Sensitive Information (JUN 2024)

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(a) Definitions. As used in this clause—

“Breach” means the loss of control, compromise, unauthorized disclosure, unauthorized acquisition, or any similar occurrence where an unauthorized person accesses or potentially accesses Sensitive Information, or an authorized user accesses Sensitive Information for an unauthorized purpose.

“Incident” means an occurrence that—

(1) Actually or imminently jeopardizes, without lawful authority, the integrity, confidentiality, or availability of information or an information system; or

(2) Constitutes a violation, or imminent threat of violation, of law, security policies, security procedures, or acceptable use policies. “Information System” means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information.

“Personally Identifiable Information (PII)” means information that can identify an individual, when used alone or with other relevant data. PII may contain direct identifiers (e.g., Social Security numbers) that can identify a person uniquely or quasi-identifiers (e.g., date of birth) that can be combined with other quasi-identifiers to successfully recognize an individual. The definition of PII is not anchored to any single category of information or technology. Examples of stand-alone PII that are particularly sensitive include: Social Security numbers (SSNs), driver's license or State identification numbers, Alien Registration Numbers (A-numbers), financial account numbers, and biometric identifiers.

“Privacy Information” means both PII and Sensitive Personally Identifiable Information (SPII).

“Sensitive Information” means any data or other information for which public disclosure, or disclosure to users without a need to know to perform their jobs, can harm individuals, the U.S. government, or private organizations. Sensitive Information includes Privacy Information and the following types of information:

(1) Agreement Information. Information received by judiciary organizations, according to agreements with other federal, state, local, tribal, territorial, or private sector partners, that is required to be protected under the agreement with that partner or other applicable laws.

(2) Procurement Information. Information related to procurements that is considered sensitive and is not normally shared with the public outside official processes. This includes internal information and documents related to procurements, source selection information, vendor proposals, and submitted information marked as proprietary or sensitive. This does not include the contractor's own proposal(s) or contract(s) with the judiciary.

(3) Information Systems Vulnerability Information (ISVI).

(A) Information technology (IT) systems data (e.g., systems inventories, enterprise architecture models) that reveal infrastructure used for servers, desktops, and networks; application name, version, and release; switching, router, and gateway information; interconnections and access methods; and mission or business use or need.

(B) Information about developing or current technology, the release of which could hinder judiciary objectives, compromise a technological advantage or countermeasure, cause a denial of service, or provide an adversary with sufficient information to clone, counterfeit, or circumvent a process or system.

(C) System vulnerability or weakness information that could be used to compromise the confidentiality, integrity, or availability of an information system.

(4) Personnel Security Information. Information that could result in physical risk to judiciary personnel.

(5) Physical Security Information. Information related to the protection of judiciary buildings, grounds, or property, including reviews or reports that illustrate or disclose facility infrastructure or security vulnerabilities. Examples include threat assessments, system security plans, security diagrams for judiciary buildings, contingency plans, risk management plans, business impact analysis studies, and certification and accreditation documentation.

(6) Court Related Information. Sealed cases, sealed documents or other information marked as sensitive by a court. This includes Highly Sensitive Documents (HSD), which are documents or other materials that contain sensitive, but unclassified, information that warrants exceptional handling and storage procedures to prevent significant consequences from unauthorized access or disclosure.

(7) Privileged/confidential Information. Information protected through recognized confidential relationships.

(8) Official Business Information. Proposed budgets, draft plans or policies, other information intended only for consideration by internal decision makers or other confidential audiences.

“Sensitive Personally Identifiable Information (SPII)” is a subset of PII that if lost, compromised, or disclosed without authorization, could result in substantial harm, embarrassment, inconvenience, or unfairness to an individual.

(1) Multiple pieces of information, when combined, may pose an increased risk of harm to the individual. SPII may consist of any grouping of information that contains an individual's name or other unique identifier, plus one or more of the following elements:

- (A) Truncated SSN (e.g., last four digits);
 - (B) Birthdate (month, day, and year);
 - (C) Citizenship or immigration status;
 - (D) Ethnic or religious affiliation;
 - (E) Sexual orientation;
 - (F) Criminal history;
 - (G) Medical information; and
 - (H) System authentication information (e.g., mother's birth name, account passwords, personal identification numbers (PINs)).
- (2) Other PII (e.g., list of employees and their performance ratings, unlisted home address, unlisted phone number) that may present an increased risk of harm to the individual depending on its context. The context includes the purpose for which the PII was collected, maintained, and used. The same information in different contexts can reveal additional information about the impacted individual.
- (b) Accessing and Protecting Sensitive Information
- (1) Contractor roles and responsibilities regarding Sensitive Information. Before the contractor shall have access to Sensitive Information, the contractor shall coordinate with the contracting officer's representative (COR) about the contractor's roles and responsibilities regarding the Sensitive Information, and how an incident or suspected incident will be handled consistent with this clause and judiciary policies and procedures. Before they may access the Sensitive Information, the contractor and their staff and subcontractors shall complete all forms, trainings, and briefings as may be necessary for security or other reasons.
- (2) Training. Contractors that have access to Sensitive Information as part of this contract shall provide their staff with training before they access Sensitive Information, and then at least annually thereafter. The training shall comply with this clause and the training shall cover how to properly handle and safeguard judiciary Sensitive Information and how to identify and report incidents or suspected incidents regarding judiciary Sensitive Information consistent with this clause. The contractor shall provide an initial report, and then an annual report each year after that, to the COR that shows that contractor staff and any subcontractor staff working on the contract have all successfully completed such training. The Contractor shall also provide the COR confirmation that any new staff or subcontractor staff that join the contract after the contract has begun have also successfully completed such training.
- (3) Access. Contractor shall have access only to those areas of judiciary Sensitive Information resources explicitly stated in this contract or approved by the contracting officer or COR in writing, as necessary for performance of the work under this contract. Any attempts by contractor personnel to gain access to any information resources not expressly authorized by the terms and conditions in this contract, or as approved in writing by the contracting officer or COR, are strictly prohibited. If this clause is violated, the judiciary will take appropriate actions regarding the contract and the individual(s) involved.
- (4) Protection Requirements
- (A) Contractor shall safeguard all Sensitive Information and shall take reasonable measures to prevent the unauthorized use, disclosure, or loss of Sensitive Information. This includes Sensitive Information in any medium or form, including electronic, oral, or paper.
- (B) Contractor and their subcontractors shall safeguard Sensitive Information whether it resides on judiciary owned and operated information systems, judiciary owned and contractor-operated information systems, contractor-owned and/or operated information systems operating on behalf of the judiciary, and any situation where contractor and/or subcontractor employees may have access to Sensitive Information because of their relationship with the judiciary.
- (C) Sensitive Information shall not be stored on a mobile device or portable electronic media and shall be handled with awareness of the surroundings, so that the Sensitive Information is not disclosed to unauthorized individuals. Sensitive Information shall be secured when unattended or not in use. If performance of the contract requires the contractor to access Sensitive Information on a mobile device or portable electronic media, they shall notify the contracting officer and COR and provide details on the use case required and how such use will comply with this clause and all other applicable policies and guidelines. The COR will work with the contractor and determine if such a use case is acceptable. The contractor shall not use or store Sensitive Information on a mobile device or portable electronic media until the contracting officer provides acceptance of the use case.
- (D) Contractor shall encrypt Sensitive Information if the Sensitive Information is in transit or is stored outside of judiciary networks. This includes any Sensitive Information that may reside on, or transit contractor-owned or operated information systems.
- (E) All Sensitive Information must be appropriately labeled, secured, and be properly returned, disposed of, or sanitized when no longer needed or at the end of the contract. See section (e) of this clause for more guidance on returning, sanitizing, and disposing of judiciary Sensitive Information.
- (F) Removal. The contracting officer may require the contractor to prohibit individuals from working on the contract if the judiciary deems their initial or continued employment on the contract contrary to the public interest for any reason, including, but not limited to, carelessness, insubordination, incompetence, or security concerns.
- (c) Incident Reporting Requirements
- (1) Contractors and subcontractors shall report all known or suspected incidents to the Security Operations Center (SOC), which is staffed 24 hours per day, seven days per week.
- (A) When reporting incidents to the SOC, contractors and subcontractors shall submit the report by:
- (i) email to soc@ao.uscourts.gov with courtesy copy to the contracting officer and COR using the contact information identified in the contract, or

- (ii) phone call to **202-502-4370**, in which case the contractor must notify the contracting officer and COR immediately after reporting to the SOC.
- (B) Contractors and subcontractors shall report all known or suspected incidents involving PII or SPII within one hour of discovery. All other incidents shall be reported within eight hours of discovery.
- (C) Subcontractors shall notify the prime contractor if they have reported a known or suspected incident to the SOC. Lower tier subcontractors shall also notify their higher tier subcontractor, until the prime contractor is reached.
- (2) The judiciary will determine whether information exposed in an unauthorized disclosure or security breach of information under the contractor's control or in an information system under the contractor's control at the time of the incident is Sensitive Information, PII, or SPII by performing an assessment of the specific risk that an individual could be identified using the exposed information with other information that is linked or linkable to the individual. Information that is not PII when considered alone can become PII or SPII whenever additional information becomes available, in any medium or from any source, that would make it possible to identify an individual. Certain data elements are particularly sensitive and may alone present an increased risk of harm to an individual. Final determination of the categorization of exposed information as Sensitive Information, PII, or SPII will be made in writing by the contracting officer.
- (3) Sensitive Information transmitted via email shall be protected by encryption. When using regular email channels, contractors and subcontractors shall not include any Sensitive Information in the subject or body of any email. The Sensitive Information shall be included as a password-protected attachment with the password provided under separate cover, including as a separate email. Recipients of Sensitive Information shall comply with any email restrictions imposed by the originator.
- (4) No incident may, by itself, be interpreted as evidence that the contractor or subcontractor has failed to provide adequate information security safeguards for Sensitive Information or has otherwise failed to meet the requirements of the contract.
- (5) If an incident involves PII or SPII, contractors and subcontractors shall also provide as many of the following data elements that are available at the time the incident is reported, with any remaining data elements provided within 24 hours of submission of the initial incident report:
 - (A) Unique Entity Identifier (UEI);
 - (B) Contract numbers affected, unless all contracts by the company are affected;
 - (C) Facility CAGE code, if the location of the event is different than the prime contractor location;
 - (D) Point of contact (POC), if different than the POC recorded in the System for Award Management (address, position, telephone, and email);
 - (E) Contracting officer POC (address, telephone, and email);
 - (F) Contract clearance level;
 - (G) Name of subcontractor and CAGE code, if this was an incident on a subcontractor network;
 - (H) Government programs, platforms, or systems involved;
 - (I) Location(s) of incident;
 - (J) Date and time the incident was discovered;
 - (K) Server names where Privacy Information resided at the time of the incident, both at the contractor and subcontractor level;
 - (L) Description of the government PII or SPII contained within the system; and
 - (M) Any additional information relevant to the incident.
- (d) Incident Response Requirements
 - (1) All determinations by the judiciary related to incidents, including response activities, will be made in writing by the contracting officer.
 - (2) The contractor shall provide full access and cooperation for all activities determined by the government to be required to ensure an effective incident response, including providing all requested images, log files, and event information to facilitate rapid resolution of incidents.
 - (3) Incident response activities determined to be required by the government may include, but are not limited to, the following:
 - (A) Inspections;
 - (B) Investigations;
 - (C) Forensic reviews;
 - (D) Data analyses and processing; and
 - (E) Revocation of the Authority to Operate (ATO), if applicable.
 - (4) The contractor shall immediately preserve and protect images of known affected information systems and all available monitoring or packet capture data. The monitoring or packet capture data shall be retained for at least 180 days from submission of the incident report to allow the judiciary to request the media or decline interest.
 - (5) The judiciary, at its sole discretion, may obtain assistance from other Federal agencies and/or third-party firms to aid in incident response activities.
- (e) Certificate of Sanitization of Government and Government-Activity-Related Files and Information

Upon the conclusion of the contract by expiration, termination, cancellation, or as otherwise indicated in the contract, the contractor shall return all Sensitive Information to the judiciary and/or destroy it physically and/or logically as identified in the contract, unless the contract states that return and/or destruction of Sensitive Information is not required. Destruction shall conform to the guidelines for media sanitization contained in NIST SP 800-88, Guidelines for Media Sanitization. The contractor shall certify and confirm the

sanitization of all government and government-activity related files and information. The contractor shall submit the certification to the COR and contracting officer following the template provided in NIST SP 800–88, Guidelines for Media Sanitization, Appendix G.

(f) Other Reporting Requirements

Incident reporting required by this clause does not rescind the contractor's responsibility for other incident reporting pertaining to its information systems under other clauses that may apply to its contract(s), or as a result of other applicable statutory or regulatory requirements, or other government requirements.

(g) PII and SPII Incident Notification Requirements

(1) All determinations by the judiciary related to notifications to affected individuals and/or federal agencies and related services (e.g., credit monitoring) will be made in writing by the contracting officer.

(2) No later than five business days after being directed by the contracting officer, or as otherwise required by applicable law, the contractor shall notify any individual whose PII or SPII was either under the control of the contractor or resided in an information system under control of the contractor at the time the incident occurred. The method and content of any notification by the contractor shall be coordinated with, and subject to prior written approval by, the contracting officer. The contractor shall not proceed with notification unless directed in writing by the contracting officer.

(3) Subject to government analysis of the incident and direction to the contractor regarding any resulting notification, the notification method may consist of letters to affected individuals sent by first-class mail, electronic means, or general public notice, as approved by the contracting officer. Notification may require the contractor's use of address verification and/or address location services. At a minimum, the notification shall include:

- (A) A brief description of the incident;
- (B) A description of the types of PII or SPII involved;
- (C) A statement as to whether the PII or SPII was encrypted or protected by other means;
- (D) Steps individuals may take to protect themselves;
- (E) What the contractor and/or the government are doing to investigate the incident, mitigate the incident, and protect against any future incidents; and
- (F) Information identifying who individuals may contact for additional information.

(h) Credit Monitoring Requirements

The contracting officer may direct the contractor to:

(1) Provide notification to affected individuals, as described in paragraph (g)(2).

(2) Provide credit monitoring services to individuals whose PII or SPII was under the control of the contractor or resided in the information system at the time of the incident for a period beginning the date of the incident and extending not less than 18 months from the date the individual is notified. Credit monitoring services shall be provided from a company with which the contractor has no affiliation. At a minimum, credit monitoring services shall include:

- (A) Triple credit bureau monitoring;
- (B) Daily customer service;
- (C) Alerts provided to the individual for changes and fraud; and
- (D) Assistance to the individual with enrollment in the services and the use of fraud alerts.

(3) Establish a dedicated call center. Call center services shall include:

- (A) A dedicated telephone number to contact customer service within a fixed period;
- (B) Information necessary for enrollees to access credit reports and credit scores;
- (C) Escalation of calls that cannot be handled by call center staff, to call center management or AOUSC, as appropriate;
- (D) Weekly reports on call center volume, issue escalation, and other key metrics;

(E) Customized frequently asked questions, approved in writing by the contracting officer in coordination with the Judiciary Breach Response Team (BRT); and

(F) Information for enrollees to contact customer service and fraud resolution representatives for credit monitoring assistance.

(i) Subcontracts

(1) The contractor shall insert this clause in all subcontracts and require subcontractors to include this clause in all lower tier subcontracts when subcontractor employees will:

- (A) have access to Sensitive Information;
- (B) have access to or handle systems containing Sensitive Information;
- (C) collect or maintain Sensitive Information on behalf of the Judiciary; or
- (D) use a subcontractor information system(s) to process, store, or transmit Sensitive Information.

(2) Any violation by a subcontractor of any of the provisions established in this clause will be attributed to the contractor.

(3) Any breach or incident, as defined in paragraph (a) Definitions of this clause, experienced by a subcontractor will be attributed to the contractor for the purpose of triggering contractor compliance with the requirements in paragraphs (c) Incident Reporting Requirements, (d) Incident Response Requirements, (f) Other Reporting Requirements, (g) PII and SPII Incident Notification Requirements, and (h) Credit Monitoring Requirements, of this clause.

(end)

The judiciary may increase the quantity of products called for in this contract by requiring the delivery of the numbered line item(s) identified as an option item, in the quantity and at the price set forth in the line item(s). The contracting officer may exercise this option, at any time within the period specified in the contract, by giving written notice to the contractor. Delivery of the items added by the exercise of this option will continue immediately after, and at the same rate as, delivery of like items called for under this contract, unless the parties otherwise agree.

(END)

2-90C Option to Extend Services APR 2013

The judiciary may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The contracting officer may exercise the option by written notice to the contractor no later than 30 days calendar days prior to the contract's current expiration date.

(END)

2-90D Option to Extend the Term of the Contract APR 2013

(a) The judiciary may extend the term of this contract by written notice to the contractor no later than THIRTY (30) calendar days prior to the contract's current expiration date; provided that the judiciary gives the contractor a preliminary written notice of its intent to extend at least SIXTY (60) calendar days [60 days unless a different number of days is inserted] before the contract expires. The preliminary notice does not commit the judiciary to an extension.

(b) If the judiciary exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed TEN (10) YEARS OR 120 MONTHS.

(END)

3-120A Order of Precedence (Deviation) AUG 2025

A. Order of Precedence.

Any conflicts or inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

- (1) The schedule of supplies/services.
- (2) Judiciary clauses 7-175, Assignments of Claims; 7-235, Disputes; 7-135, Payments; and 7-125, Invoices.
- (3) The "Unauthorized Obligations" and "Commercial Supplier Agreements Unenforceable Clauses" paragraphs of this clause.
- (4) Addenda to this solicitation or contract, including any commercial supplier agreements as defined in paragraph D of this clause and as amended by the Commercial Supplier Agreements Unenforceable Clauses provision in paragraph C of this clause.
- (5) Solicitation provisions if this is a solicitation.
- (6) Contract clauses if this is a contract.
- (7) The Government's standard contract form.
- (8) Other documents, exhibits, and attachments.
- (9) The specification.

When an order utilizing clause 3-120A is placed against an indefinite delivery vehicle (IDV) or a Blanket Purchasing Agreement (BPA) that contains Federal Acquisition Regulation (FAR) clause 52.212-4, paragraph A of clause 3-120A shall be considered replaced with FAR 52.212-4's order of precedence provision, and the remaining paragraphs of clause 3-120A shall be considered "Other Compliances" and shall fit under FAR 52.212-4(s)(2) as "Other Compliances" per that clause's order of precedence.

B. Unauthorized Obligations.

(1) Except as stated in paragraph (B)(2) of this clause, when any supply or service acquired under this contract is subject to any commercial supplier agreement that includes any language, provision, or clause requiring the Government to pay any future fees, penalties, interest, legal costs or to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such language, provision, or clause is unenforceable against the Government.

(ii) Neither the Government nor any Government authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the commercial supplier agreement. If the commercial supplier agreement is invoked through an "I agree" click box or other comparable mechanism (e.g., "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such language, provision, or clause is deemed to be stricken from the commercial supplier agreement.

(2) Paragraph (B)(1) of this clause does not apply to indemnification or any other payment by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

C. Commercial Supplier Agreements Unenforceable Clauses.

When any supply or service acquired under this contract is subject to a commercial supplier agreement, the following language shall be deemed incorporated into the commercial supplier agreement. As used herein, "this agreement" means the commercial supplier agreement:

(1) Notwithstanding any other provision of this agreement, when the end user is an agency or instrumentality of the U.S. Government, the following shall apply:

(i) Applicability. This agreement is a part of a contract between the commercial supplier and the U.S. Government for the acquisition of the supply or service that necessitates a license or other similar legal instrument (including all contracts, task orders, and delivery orders).

(ii) End user. This agreement shall bind the ordering activity as end user but shall not operate to bind a Government employee or person acting on behalf of the Government in his or her personal capacity.

(iii) Law and disputes. This agreement is governed by Federal law.

(A) Any language purporting to subject the U.S. Government to the laws of a U.S. state, U.S. territory, district, or municipality, or a foreign nation, except where Federal law expressly provides for the application of such laws, is hereby deleted.

(B) Any language requiring dispute resolution in a specific forum or venue that is different from that prescribed by applicable Federal law is hereby deleted.

(C) Any language prescribing a different time period for bringing an action than that prescribed by applicable Federal law in relation to a dispute is hereby deleted.

(iv) Continued performance. The supplier or licensor shall not unilaterally revoke, terminate or suspend any rights granted to the Government except as allowed by this contract. If the supplier or licensor believes the ordering activity to be in breach of the agreement, it shall pursue its rights in accordance with Clause 7-235 or other applicable Federal statute while continuing performance as set forth in the disputes clause.

(v) Arbitration; equitable or injunctive relief. In the event of a claim or dispute arising under or relating to this agreement, a binding arbitration shall not be used unless specifically authorized by agency guidance, and equitable or injunctive relief, including the award of attorney fees, costs or interest, may be awarded against the U.S. Government only when explicitly provided by statute.

(vi) Updating terms.

(A) After award, the Contractor may unilaterally revise commercial agreement terms if they are not material. A material change is defined as:

- (1) Terms that change judiciary rights or obligations;
- (2) Terms that increase judiciary prices;
- (3) Terms that decrease overall level of service; or
- (4) Terms that limit any other judiciary right addressed elsewhere in this contract, Blanket Purchasing Agreement (BPA), Basic Ordering Agreement (BOA), task order, or call order.

(B) For revisions that will materially change the terms of the contract, BPA, BOA, task order, or order, the revised commercial agreement must be incorporated into the contract, BPA, BOA, task order, or order using a bilateral modification.

(C) Any agreement license terms or conditions unilaterally revised subsequent to award that are inconsistent with any material term or provision of this BPA, contract, or order shall not be enforceable against the judiciary, and the judiciary shall not be deemed to have consented to them.

(vii) Automatic renewals. If any license or service tied to periodic payment is provided under this agreement (e.g., annual software maintenance or annual lease term), such license or service shall not renew automatically upon expiration of its current term without prior express consent by an authorized Government representative.

(viii) Indemnification of end user. Any clause of this agreement requiring the commercial supplier or licensor to defend or indemnify the end user is hereby amended to provide that the U.S. Department of Justice has the sole right to represent the United States in any such action, in accordance with 28 U.S.C. 516.

(ix) Audits. Any clause of this agreement permitting the commercial supplier or licensor to audit the end user's compliance with this agreement is hereby amended as follows:

- (A) Discrepancies found in an audit may result in a charge by the commercial supplier or licensor to the ordering activity. Any resulting invoice must comply with the proper invoicing requirements specified in the underlying Government contract or order.
- (B) This charge, if disputed by the ordering activity, will be resolved in accordance with the disputes clause; no payment obligation shall arise on the part of the ordering activity until the conclusion of the dispute process.
- (C) Any audit requested by the contractor will be performed at the contractor's expense, without reimbursement by the Government.

(x) Taxes or surcharges. Any taxes or surcharges which the commercial supplier or licensor seeks to pass along to the Government as end user will be governed by the terms of the underlying Government contract or order and, in any event, must be submitted to the Contracting Officer for a determination of applicability prior to invoicing unless specifically agreed to otherwise in the Government contract.

(xi) Non-assignment. This agreement may not be assigned, nor may any rights or obligations thereunder be delegated, without the Government's prior approval.

(xii) Confidential information. If this agreement includes a confidentiality clause, such clause is hereby amended to state that neither the agreement nor the contract price list, as applicable, shall be deemed "confidential information." Issues regarding release of "unit pricing" or "line-item pricing" will be resolved consistent Judiciary Clause 1-15, Disclosure of Contractor Information to the Public. Notwithstanding anything in this agreement to the contrary, the Government may retain any confidential information as required by law, regulation or its internal document retention procedures for legal, regulatory or compliance purposes; provided, however, that all such retained confidential information will continue to be subject to the confidentiality obligations of this agreement.

(xiii) Credit application/Master account. Any language requiring the use of a credit application or master account is hereby deleted. Credit provisions are not applicable to the judiciary.

(xiv) Advance payments. Except for software licenses provided by the vendor contemporaneously with the Government's payment, and publications printed or recorded in any way for the auditory or visual use of the agency, any language requiring the Government to pay for more than the value of services already provided or articles already delivered is hereby deleted unless expressly authorized in writing by the Contracting Officer and provided for in the schedule of supplies/services.

(xv) Insurance. Because the Government is self-insured, any language requiring the Government to pay for insurance is hereby deleted unless expressly authorized in writing by the Contracting Officer.

(xvi) Damage deposits. Any language requiring the Government to pay a deposit for damages is hereby deleted.

(2) If any language, provision, or clause of this agreement conflicts or is inconsistent with the preceding paragraph (C)(1), the language, provisions, or clause of paragraph (C)(1) shall prevail to the extent of such inconsistency.

D. Definitions.

Cloud computing means a model for enabling ubiquitous, convenient, on-demand network access to a shared pool of configurable computing resources (e.g., networks, servers, storage, applications, and services) that can be rapidly provisioned and released with minimal management effort or service provider interaction. This includes other commercial terms, such as on-demand self-service, broad network access, resource pooling, rapid elasticity, and measured service. It also includes commercial offerings for software-as-a-service, infrastructure-as-a-service, and platform-as-a-service.

Commercial computer software means any computer software that is a commercial product or commercial service.

Commercial supplier agreement means terms and conditions customarily offered to the public by vendors of supplies or services that meets the definition of "commercial item" set forth in the Glossary of Procurement Terms in Volume 14 (Procurement) of the Guide to Judiciary Policy intended to create a binding legal obligation on the end user. Commercial supplier agreements are particularly common in information technology acquisitions, including acquisitions of commercial computer software and commercial technical data, but they may apply to any product or service. The term applies—

(1) Regardless of the format or style of the document. For example, a commercial supplier agreement may be styled as standard terms of sale or lease, Terms of Service (TOS), End User License Agreement (EULA), or another similar legal instrument or agreement, and may be presented as part of a proposal or quotation responding to a solicitation for a contract or order;

(2) Regardless of the media or delivery mechanism used. For example, a commercial supplier agreement may be presented as one or more paper documents or may appear on a computer or other electronic device screen during a purchase, software installation, other product delivery, registration for a service, or another transaction.

Computer software —

(1) Means

(i) Computer programs that comprise a series of instructions, rules, routines, or statements, regardless of the media in which recorded, that allow or cause a computer to perform a specific operation or series of operations; and

(ii) Recorded information comprising source code listings, design details, algorithms, processes, flow charts, formulas, and related material that would enable the computer program to be produced, created, or compiled.

(2) Does not include computer databases or computer software documentation.

Computer software documentation means owner's manuals, user's manuals, installation instructions, operating instructions, and other similar items, regardless of storage medium, that explain the capabilities of the computer software or provide instructions for using the software.

(end)

(a) *Minimum order.* When the judiciary requires products or services covered by this contract in an amount less than \$500.00, the judiciary is not obligated to purchase, nor is the contractor obligated to furnish, those products or services under this contract.

(b) *Maximum order.* The contractor is not obligated to honor:

(1) any order for a single item in excess of \$350,000.00;

(2) any order for a combination of items in excess of \$2,000,000.00; or

(3) a series of orders from the same ordering office in the course of Thirty (30) days that together call for quantities exceeding the limitations stated in subparagraph (b)(1) or (b)(2) above.

(c) If this is a requirements contract, (i.e. includes Clause 4-20, Requirements) the judiciary is not required to order a part of any one requirement from the contractor if that requirement exceeds the maximum-order limitations stated in paragraph (b) above.

(d) Notwithstanding paragraphs (b) and (c) of this clause, the contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within Five (5) days after issuance, with written notice stating the contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the judiciary may acquire the products or services from another source.

(end)

6-65 Rights in Data-Special Works JAN 2010

(a) *Definitions.* As used in this clause:

"Data" means recorded information, regardless of form or the media on which it may be recorded. The term includes technical data and computer software. The term does not include information incidental to contract administration, such as financial, administrative, cost or pricing, or management information.

"Unlimited rights" means the rights of the judiciary to use, disclose, reproduce, prepare derivative works, distribute copies to the public, and perform publicly and display publicly, in any manner and for any purpose, and to have or permit others to do so.

(b) *Allocation of Rights.*

(1) The judiciary shall have:

(i) unlimited rights in all data delivered under this contract, and in all data first produced in the performance of this contract, except as provided in paragraph (c) of this clause;

(ii) the right to limit assertion of copyright in data first produced in the performance of this contract, and to obtain assignment of copyright in that data, in accordance with paragraph (c)(1) of this clause;

(iii) the right to limit the release and use of certain data in accordance with paragraph (d) of this clause.

(2) The contractor shall have, to the extent permission is granted in accordance with paragraph (c)(1) of this clause, the right to assert claim to copyright subsisting in data first produced in the performance of this contract.

(c) *Copyright:*

(1) Data first produced in the performance of this contract

(i) The contractor shall not assert or authorize others to assert any claim to copyright subsisting in any data first produced in the performance of this contract without prior written permission of the contracting officer. When copyright is asserted, the contractor shall affix the appropriate copyright notice of 17 U.S.C. 401 or 402 and acknowledgment of judiciary sponsorship (including contract number) to the data when delivered to the judiciary, as well as when the data are published or deposited for registration as a published work in the U.S. Copyright Office. The contractor grants to the judiciary, and others acting on its behalf, a paidup, nonexclusive, irrevocable, worldwide license for all delivered data to reproduce, prepare derivative works, distribute copies to the public, and perform publicly and display publicly, by or on behalf of the judiciary.

(ii) If the judiciary desires to obtain copyright in data first produced in the performance of this contract and permission has not been granted as set for in paragraph (c)(1)(i) of this clause, the contracting officer shall direct the contractor to assign (with or without registration), or obtain the assignment of, the copyright to the judiciary or its designated assignee.

(2) Data not first produced in the performance of this contract. The contractor shall not, without prior written permission of the contracting officer, incorporate in data delivered under this contract any data not first produced in the performance of this contract and that contain the copyright notice of 17 U.S.C. 401 or 402, unless the contractor identifies such data and grants to the judiciary, or acquires on its behalf, a license of the same scope as set forth in paragraph (c)(1) of this clause.

(c) *Release and use restrictions.* Except as otherwise specifically provided for in this contract, the contractor shall not use, release, reproduce, distribute, or publish, any data first produced in the performance of this contract, nor authorize others to do so, without written permission of the contracting officer.

(d) *Indemnity.* The contractor shall indemnify the judiciary and its officers, agents, and employees acting for the judiciary against any liability, including costs and expenses, incurred as the result of the violation of trade secrets, proprietary rights, copyrights, or right of privacy or publicity, arising out of the creation, delivery, publication, or use of any data furnished under this contract; or any libelous or other unlawful matter contained in such data. The provisions of this paragraph do not apply unless the judiciary provides notice to the contractor as soon as practicable of any claim or suit, affords the contractor an opportunity under applicable laws, rules, or regulations to participate in the defense of the claim or suit, and obtains the contractor's consent to the settlement of any suit or claim other than as required by final decree of a court of competent jurisdiction; and these provisions do not apply to material furnished to the contractor by the judiciary and incorporated in data to which this clause applies.

(END)

7-115 Availability of Funds

JAN 2003

Funds are not presently available for this contract. The judiciary's obligation under this contract is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the judiciary for any payment may arise until funds are made available to the contracting officer for this contract and until the contractor receives notice of such availability, to be confirmed in writing by the contracting officer.

(END)

7-75 Subcontracts

JAN 2003

(a) *Definitions* as used in this clause:

"Approved purchasing system" means a contractor's purchasing system that has been reviewed and approved in writing.

"Consent to subcontract" means the contracting officer's written consent for the contractor to enter into a particular subcontract.

"Subcontract" means any contract entered into by a subcontractor to furnish products or services for performance of the prime contract or a subcontract. It includes, but is not limited to, purchase orders, and changes and modifications to purchase orders.

(b) This clause does not apply to subcontracts for special test equipment.

(c) When this clause is included in a fixed-price type contract, consent to subcontract is required only on unpriced contract actions (including unpriced modifications or unpriced purchase/delivery/task orders), and only if required in accordance with paragraph (d) or (e) of this clause.

(d) If the contractor does not have a written approved purchasing system, consent to subcontract is required for any subcontract that:

(1) is of the cost-reimbursement, time-and-materials, or labor-hour type; or

(2) is fixed price and exceeds either the judiciary's small purchase threshold or 5 percent of the total estimated cost of the contract.

(e) If the contractor has a written approved purchasing system, the contractor nevertheless shall obtain the contracting officer's written consent before placing the following subcontracts:

[Contracting office list conditions requiring consent]

f) (1) The contractor shall notify the contracting officer reasonably in advance of placing any subcontract or modification thereof for which consent is required under paragraph (c), (d), or (e) of this clause, including the following information:

(i) a description of the products or services to be subcontracted;

(ii) identification of the type of subcontract to be used;

(iii) identification of the proposed subcontractor;

(iv) the proposed subcontract price;

(v) the subcontractor's current, complete, and accurate cost or pricing data and Certificate of Current Cost or Pricing Data, if required by other contract provisions;

(vi) the subcontractor's Disclosure Statement or Certificate relating to Cost Accounting Standards when such data are required by other provisions of this contract;

(vii) a negotiation memorandum reflecting:

(A) the principal elements of the subcontract price negotiations;

(B) the most significant considerations controlling establishment of initial or revised prices;

(C) the reason cost or pricing data were or were not required;

(D) the extent, if any, to which the contractor did not rely on the subcontractor's cost or pricing data in determining the price objective and in negotiating the final price;

(E) the extent to which it was recognized in the negotiation that the subcontractor's cost or pricing data were not accurate, complete, or current; the action taken by the contractor and the subcontractor; and the effect of any such defective data on the total price negotiated;

(F) the reasons for any significant difference between the contractor's price objective and the price negotiated; and

(G) a complete explanation of the incentive fee or profit plan when incentives are used. The explanation shall identify each critical performance element, management decisions used to quantify each incentive element, reasons for the incentives, and a summary of all trade-off possibilities considered.

(2) If the contractor has a written approved purchasing system and consent is not required under paragraph (c), (d), or (e) of this clause, the contractor nevertheless shall notify the contracting officer reasonably in advance of entering into any (i) cost-plus-fixed-fee subcontract, or (ii) fixed-price subcontract that exceeds either the small purchases threshold or 5 percent of the total estimated cost of this contract. The notification shall include the information required by paragraphs (f)(1)(i) through (f)(1)(iv) of this clause.

(g) Unless the consent or approval specifically provides otherwise, neither consent by the contracting officer to any subcontract nor approval of the contractor's purchasing system will constitute a determination:

(1) of the acceptability of any subcontract terms or conditions;

(2) of the allowability of any cost under this contract; or

(3) to relieve the contractor of any responsibility for performing this contract.

(h) No subcontract or modification thereof placed under this contract shall provide for payment on a cost-plus-a-percentage-of-cost basis, or any fee payable under costreimbursement type subcontracts will not exceed the fee limitations.

- (i) The contractor shall give the contracting officer immediate written notice of any action or suit filed and prompt notice of any claim made against the contractor by any subcontractor or vendor that, in the opinion of the contractor, may result in litigation related in any way to this contract, with respect to which the contractor may be entitled to reimbursement from the judiciary.
- (j) The judiciary reserves the right to review the contractor's purchasing system.
- (k) Paragraphs (d) and (f) of this clause do not apply to the following subcontracts, which were evaluated during negotiations.
[To be completed by the Contracting Officer in the contract award]
 (END)

B-5 **Clauses Incorporated by Reference****OCT 2010**

This procurement incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the contracting officer will make their full text available. Also, the full text of a clause may be accessed electronically at this address:

<http://www.uscourts.gov/procurement.aspx>.

(END)

Section J - List of Attachments

Identifier	Title	DateS	Number of Pages
1	7 - Attachment 1 - National Drug Lab Price Sheet.xlsx	02/04/2026	
2	7 - Attachment 2 - Lab Location Info.xlsx	02/04/2026	
3	7 - Attachment 3 - Specifications for PACTS Interface.pdf	02/04/2026	
4	7 - Attachment 4 - Equipment and Reagent Requirements 2.11.26.docx	02/12/2026	
5	7 - Attachment 5 - Installation Plan.xlsx	02/04/2026	
8	7 - Questions Submission Form Template.xlsx	02/18/2026	

Provision(s) Incorporated By Reference, see Provision B-1

Clause	Title	Fill-ins
3-15	Place of Performance	

3-130 **Authorized Negotiators****JAN 2003**

The offeror represents that the following persons are authorized to negotiate on its behalf with the judiciary in connection with this solicitation (*offeror lists names, titles, and telephone numbers of the authorized negotiators*).

Name: _____

Titles: _____

Telephone: _____

Fax: _____

Email: _____

(END)

3-20 **Certification Regarding Debarment, Suspension, Proposed Debarment, and Other Responsibility Matters****MAR 2019**

(a) (1) The offeror certifies, to the best of its knowledge and belief, that:

(i) the offeror and/or any of its principals:

(A) are ____ are not ____ presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any federal agency;

(B) have ____ have not ____, within the three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (federal, state, or local) contract or subcontract; violation of federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating federal criminal tax laws, or receiving stolen property;

(C) are ___ are not ___ presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in paragraph (a)(1)(i)(B) of this provision;

(D) have ___, have not ___, within a three-year period preceding this offer, been notified of any delinquent federal taxes in an amount that exceeds \$3,500 for which the liability remains unsatisfied.

(1) Federal taxes are considered delinquent if both of the following criteria apply:

(i) The tax liability is finally determined. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(ii) The taxpayer is delinquent in making payment. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(2) Examples.

(i) The taxpayer has received a statutory notice of deficiency, under I.R.C. § 6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(ii) The IRS has filed a notice of federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. § 6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(iii) The taxpayer has entered into an installment agreement pursuant to I.R.C. § 6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(iv) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. § 362 (the Bankruptcy Code).

(ii) The offeror has ___ has not ___, within a three-year period preceding this offer, had one or more contracts terminated for default by any federal agency.

(2) "Principal," for the purposes of this certification, means an officer; director; owner; partner or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division, or business segment, and similar positions).

This certification concerns a matter within the jurisdiction of an agency of the United States and the making of a false, fictitious, or fraudulent certification may render the maker subject to prosecution under 18 U.S.C. § 1001.

(b) The offeror shall provide immediate written notice to the contracting officer if, at any time prior to contract award, the offeror learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.

(c) A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this solicitation. However, the certification will be considered in connection with a determination of the offeror's responsibility. Failure of the offeror to furnish a certification or provide such additional information as requested by the contracting officer may render the offeror nonresponsible.

(d) Nothing contained in the foregoing will be construed to require establishment of a system of records in order to render, in good faith, the certification required by paragraph (a) of this provision. The knowledge and information of an offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.

(e) The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the offeror knowingly rendered an erroneous certification, in addition to other remedies available to the judiciary, the contracting officer may terminate the contract resulting from this solicitation for default.

(END)

3-5 Taxpayer Identification and Other Offeror Information

APR 2011

(a) *Definitions*

"Taxpayer Identification (TIN)," as used in this provision, means the number required by the Internal Revenue Service (IRS) to be used by the offeror in reporting income tax and other returns. The TIN may be either a social security number or an employer identification number.

(b) All offerors shall submit the information required in paragraphs (d) through (f) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A and implementing regulations issued by the IRS. If the resulting contract is subject to the payment reporting requirements, the failure or refusal by the offeror to furnish the information may result in a 31 percent reduction of payments otherwise due under the contract.

(c) The TIN may be used by the government to collect and report on any delinquent amounts arising out of the offeror's relationship with the government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to payment recording requirements, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(d) *Taxpayer Identification Number (TIN):*

A _____

☐ TIN has been applied for.

☐ TIN is not required, because: _____

☐ Offeror is a nonresident alien, foreign corporation or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government;

☐ Offeror is an agency or instrumentality of the federal government.

(e) *Type of organization:*

☐ sole proprietorship;

☐ partnership;

☐ corporate entity (not tax-exempt);

☐ corporate entity (tax-exempt);

☐ government entity (federal, state or local);

☐ foreign government;

☐ international organization per-26 CFR 1.6049-4;

☐ other _____.

(f) *Contractor Representations*

The offeror represents as part of its offer that it is ☐, is not ☐, 51% owned and the management and daily operations are controlled by one or more members of the selected socio-economic group(s) below:

☐ Women Owned Business

☐ Minority Owned Business (if selected, then one sub-type is required)

☐ Black American Owned

☐ Hispanic American Owned

☐ Native American Owned (American Indians, Eskimos, Aleuts, or Native Hawaiians)

☐ Asian-Pacific American Owned (persons with origins from Burma, Thailand, Malaysia, Indonesia, Singapore, Brunei, Japan, China, Taiwan, Laos, Cambodia (Kampuchea), Vietnam, Korea, The Philippines, U.S. Trust Territory of the Pacific Islands (Republic of Palau), Republic of the Marshall Islands, Federated States of Micronesia, the Commonwealth of the Northern Mariana Islands, Guam, Samoa, Macao, Hong Kong, Fiji, Tonga, Kiribati, Tuvalu, or Nauru)

☐ Subcontinent Asian (Asian-Indian) American Owned (persons with origins from India, Pakistan, Bangladesh, Sri Lanka, Bhutan, the Maldives Islands, or Nepal)

☐ Individual/concern, other than one of the preceding.

(END)

6-50 Representation of Rights in Data

APR 2013

(a) This solicitation sets forth the judiciary's known delivery requirements for data (as defined in Clause 6-60, Rights in Data - General). Any data delivered under the resulting contract will be subject to Clause 6-60, Rights in Data - General included in this contract. Under Clause 6-60, a contractor may withhold from delivery data that qualify as limited rights data or restricted computer software, and delivery form, fit, and function data instead. Clause 6-60 also may be used with its Alternates I and/or II to obtain delivery of limited rights data or restricted computer software, marked with limited rights or restricted rights notices, as appropriate.

(b) By completing the remainder of this paragraph, the offeror represents that it has reviewed the requirements for the delivery of technical data or computer software and states (*offeror check appropriate block*):

___ None of the data proposed for fulfilling the data delivery requirements qualifies as limited rights data or restricted computer software; or

___ Data proposed for fulfilling the data delivery requirements qualify as limited rights data or restricted computer software and are identified as follows:

(c) Any identification of limited rights data or restricted computer software in the offeror's response is not determinative of the status of the data should a contract be awarded to the offeror.

(END)

Provision(s) Incorporated By Reference, see Provision B-1

Clause	Title	Fill-ins
3-210	Protests	
3-85	Explanation to Prospective Offerors	
3-95	Preparation of Offers	
7-60	Judiciary Furnished Property or Services	

3-100 Instructions to Offerors

APR 2013

(a) *Definitions.* As used in this provision:

"Discussions" are negotiations that occur after establishment of the competitive range that may, at the contracting officer's discretion, result in the offeror being allowed to revise its offer.

"In writing," "writing," or "written" means any worded or numbered expression that can be read, reproduced, and later communicated, and includes electronically transmitted and stored information.

"Offer modification" is a change made to an offer before the solicitation's closing date and time, or made in response to an amendment, or made to correct a mistake at any time before award.

"Offer revision" is a change to an offer made after the solicitation closing date, at the request of or as allowed by a contracting officer as the result of negotiations.

"Time," if stated as a number of days, is calculated using calendar days, unless otherwise specified, and will include Saturdays, Sundays, and legal holidays. However, if the last day falls on a Saturday, Sunday, or legal holiday, then the period will include the next working day.

(b) *Amendments to Solicitations.* If this solicitation is amended, all terms and conditions that are not amended remain unchanged. Offerors shall acknowledge receipt of any amendment to this solicitation by the date and time specified in the amendment(s). An offeror's failure to acknowledge amendments affecting price, quantity, quality or delivery may result in the offeror's proposal being determined unacceptable where award is made without discussions.

(c) *Submission, modification, revision, and withdrawal of offers.*

(1) Unless some other method (e.g., facsimile) is permitted in the solicitation, offers and modifications to offers shall be submitted in paper media in sealed envelopes or packages (i) addressed to the office specified in the solicitation, and (ii) showing the time and date specified for receipt, the solicitation number, and the name and address of the offeror. Offerors using commercial carriers shall ensure that the offer is marked on the outermost wrapper with the information in paragraphs (c)(1)(i) and (c)(1)(ii) of this provision.

(2) The first page of the offer shall show:

(i) the solicitation number;

(ii) the name, address, and telephone and facsimile numbers of the offeror (and email address if available);

(iii) a statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and agreement to furnish any or all items upon which prices are offered at the price set opposite each item;

(iv) names, titles, and telephone and facsimile numbers (and email addresses if available) of persons authorized to negotiate on the offeror's behalf with the judiciary in connection with this solicitation; and

(v) name, title, and signature of person authorized to sign the offer. Offers signed by an agent shall be accompanied by evidence of that agent's authority, unless that evidence has been previously furnished to the issuing office.

(3) *Submission, modification, revision, and withdrawal of offers*

(i) Offerors are responsible for submitting offers, and any modifications or revisions, so as to reach the judiciary office designated in the solicitation by the time specified in the solicitation. If no time is specified in the solicitation, the time for receipt is 4:30 p.m., local time, for the designated judiciary office on the date that offer or revision is due.

(ii) Any offer, modification, or revision received at the judiciary office designated in the solicitation after the exact time specified for receipt of offers is "late" and will not be considered unless it is received before award is made, the contracting officer determines it is in the judiciary's best interest, the contracting officer determines that accepting the late offer would not unduly delay the procurement, and:

(A) there is acceptable evidence to establish that it was received at the judiciary office designated for receipt of offers prior to the time set for receipt; or

(B) it is the only offer received.

However, a late modification of an otherwise successful offer that makes its terms more favorable to the judiciary, will be considered at any time it is received and may be accepted.

(iii) Acceptable evidence to establish the time of receipt at the judiciary office includes the time/date stamp of that office on the offer wrapper, other documentary evidence of receipt maintained by the office, or oral testimony or statements of judiciary personnel.

(iv) If an emergency or unanticipated event interrupts normal judiciary processes so that offers cannot be received at the office designated for receipt of offers by the exact time specified in the solicitation, and urgent judiciary requirements preclude amendment of the solicitation, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal judiciary processes resume.

(v) Offers may be withdrawn by written notice received at any time before award. Oral offers in response to oral solicitations may be withdrawn orally. If the solicitation authorizes facsimile offers, offers may be withdrawn via facsimile received at any time before award, subject to the conditions specified in the Provision 3-115, "Facsimile Offers". Offers may be withdrawn in person by an offeror or an authorized representative, if the identity of the person requesting withdrawal is established and the person signs a receipt for the offer before award.

(4) Unless otherwise specified in the solicitation, offers on less than all items solicited will not be considered.

(5) Offerors shall submit offers in response to this solicitation in English and in U.S. dollars.

(6) Offerors may submit modifications to their offers at any time before the solicitation closing date and time, and may submit modifications in response to an amendment, or to correct a mistake at any time before award.

(7) Offerors may submit revised offers only if requested or allowed by the contracting officer.

(8) Offers may be withdrawn at any time before award. Withdrawals are effective upon receipt of notice by the contracting officer.

(d) *Offer expiration date.* Offers in response to this solicitation will be valid for the number of days specified on the solicitation cover sheet (unless a different period is proposed by the offeror).

(e) *Restriction on disclosure and use of data.* Offerors that include in their offers data that they do not want disclosed to the public for any purpose, or used by the judiciary except for evaluation purposes, shall:

(1) mark the title page with the following legend:

This offer includes data that shall not be disclosed outside the judiciary and shall not be duplicated, used, or disclosed -- in whole or in part -- for any purpose other than to evaluate this offer. If, however, a contract is awarded to this offeror as a result of -- or in connection with -- the submission of this data, the judiciary shall have the right to duplicate, use, or disclose the data to the extent provided in the resulting contract. This restriction does not limit the judiciary's right to use information contained in this data if it is obtained from another source without restriction. The data subject to this restriction are contained in sheets [[insert numbers or other identification of sheets]]; and

(2) mark each sheet of data it wishes to restrict with the following legend:

Use or disclosure of data contained on this sheet is subject to the restriction on the title page of this offer.

(f) *Contract award.*

(1) The judiciary intends to award a contract or contracts resulting from this solicitation to the responsible offeror(s) whose offer(s) represents the best value after evaluation in accordance with the factors and subfactors in the solicitation.

(2) The judiciary may reject any or all offers if such action is in the judiciary's interest.

(3) The judiciary may waive informalities and minor irregularities in offers received.

(4) The judiciary intends to evaluate offers and award a contract without discussions with offerors (except clarifications). Therefore, the offeror's initial offer shall contain the offeror's best terms from a cost or price and technical standpoint. The judiciary reserves the right to conduct discussions if the contracting officer later determines them to be necessary. If the contracting officer determines that the number of offers that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the contracting officer may limit the number of offers in the competitive range to the greatest number that will permit an efficient competition among the most highly rated offers.

(5) The judiciary reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit cost or prices offered, unless the offeror specifies otherwise in the offer.

(6) The judiciary reserves the right to make multiple awards if, after considering the additional administrative costs, it is in the judiciary's best interest to do so.

(7) Exchanges with offerors after receipt of an offer do not constitute a rejection or counteroffer by the judiciary.

(8) The judiciary may determine that an offer is unacceptable if the prices proposed are materially unbalanced between line items or sub-line items. Unbalanced pricing exists when, despite an acceptable total evaluated price, the price of one or more contract line items is significantly overstated or understated as indicated by the application of cost or price analysis techniques. An offer may be rejected if the contracting officer determines that the lack of balance poses an unacceptable risk to the judiciary.

(9) If a cost realism analysis is performed, cost realism may be considered by the source selection authority in evaluating performance or schedule risk.

(10) A written award or acceptance of offer mailed or otherwise furnished to the successful offeror within the time specified in the offer shall result in a binding contract without further action by either party.

(11) The judiciary may disclose the following information in postaward debriefings to other offerors:

- (i) the overall evaluated cost or price and technical rating of the successful offeror;
 - (ii) the overall ranking of all offerors, when any ranking was developed by the judiciary during source selection;
 - (iii) a summary of the rationale for award; and
 - (iv) for procurements of commercial items, the make and model of the item to be delivered by the successful offeror.
- (end)

4-1 Type of Contract

JAN 2003

The judiciary plans to award a Firm-Fixed Price, indefinite delivery indefinite quantity (IDIQ) type of contract under this solicitation, and all offers shall be submitted on this basis. Alternate offers based on other contract types will not be considered.

(END)

B-1 Solicitation Provisions Incorporated by Reference

OCT 2010

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the contracting officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this address:

<http://www.uscourts.gov/procurement.aspx>.

(END)

L-1 Instructions to Offerors

General Information

This solicitation is being competed following the procedures found in the Guide to Judiciary Policy, Volume 14, § 330 "Standard Competitive Contracting Procedures." The Judiciary intends to award a firm-fixed priced IDIQ contract from this solicitation. This section provides instructions for submitting a proposal against this solicitation. The period of performance for the IDIQ contract is for a seven-year ordering period with a three-year optional ordering period and a 6-month optional ordering period under Clause 2-90C. The Government does not endorse nor recommend any specific manufacturer.

The incumbent is Siemens Healthcare Diagnostics, Inc. under USCA21D3016.

L.1.0 Due Dates

L.1.1 - Solicitation Questions

All questions regarding this solicitation shall be emailed to aj_lee@ao.uscourts.gov and vanessa_jackson@ao.uscourts.gov by 12:00 PM Eastern on February 23, 2026. All emails shall reference "**USCA26R0001 – Drug Lab RFP Questions**" in the email subject line.

Any questions that require answers that are law enforcement sensitive in nature will not be answered with sensitive information as they cannot be posted. If an answer will result in a change of any terms or conditions of the solicitation, an amendment will incorporate those changes. If submitting questions, the offeror shall identify the specific document, section, clause, and attachment of this solicitation must be referenced in or before the question. All questions must be submitted in writing. Telephoned questions will not be accepted.

L.1.2 - Proposal Due Date

Proposals are due by 3:00 P.M. (Eastern) on March 16, 2026. Late submissions will not be accepted. Proposals shall be emailed to aj_lee@ao.uscourts.gov and vanessa_jackson@ao.uscourts.gov as stated above. Hard copies will not be accepted. All emails shall reference "**USCA26R0001 – DrugLab Proposal**" in the email subject line.

L.2 - Volume Requirements and Instructions

The offeror shall provide a proposal that consists of three parts: Volume I: Technical Proposal, Volume II: Price Proposal, and Volume III: Terms and Conditions Volume. Volumes I, II, and III shall be submitted in electronic format that is viewable using the Microsoft Office suite or in PDF.

The file names shall use the following nomenclature: **OfferorName_USCA26R0001_Volume Name.**

The offeror shall furnish:

One electronic copy of the Technical Proposal, Price Proposal, and Terms and conditions Proposal, Attachment 1, Attachment 4, and Attachment 5 and Ordering Plan.

Attachment 1- "National Drug Lab Price Sheet" shall be submitted as a part of Volume II and shall be submitted as an **editable** Excel spreadsheet.

L-2.1 Page Limits and Format:

Description	Requirements
Volume I: Technical Proposal	1. Completed Attachment 4 – Data management System, Equipment & Reagent Requirements Equipment Specification Sheets, Reagent Kit Inserts, and 2. Resumes (Limited to 2 pages per resume) 3. Completed Attachment 5 - Installation Plan 4. Ordering Plan 5. Proposal Narrative. No more than 10 pages.

Volume II: Price	Completed Attachment 1 - National Drug Lab Price Sheet, editable Excel
Volume III: Terms and conditions	Limited to the items in L.5 - Volume III: Terms and Conditions 1. Business Cover Sheet 2. Signed RFP / completed Clauses 3. Assumptions, Conditions or Exceptions 4. Additional Terms and Conditions.

L.3.1 Volume I: Technical Proposal

This volume of the proposal shall consist of Data Management System, Drug Laboratory Equipment, Reagents, Key Personnel Resumes, Attachment 4, Attachment 5, and Proposal narrative.

L.3.1.1 - Data Management System: The offeror shall identify the data management system that meets the requirements as stated in C.6.3 Data Management Systems.

L.3.1.2 - Drug Laboratory Equipment: The contractor shall provide a completed Attachment 4 - Equipment & Reagent Requirements. In addition, the Manufacture's equipment specification sheet which documents and outlines the technical details, features, and capabilities of the equipment to meet the requirement shall be submitted. The contractor shall highlight the pertinent portion of the specification sheet to indicate the location of the equipment's capabilities which meet the requirements stated in Section C - Statement of Work, C.5.2.1 Performance of Equipment. If the equipment proposed by the contractor or by a subcontractor is sold as "used or refurbished", you shall submit the reseller/refurbished authorization for the proposed sub-contractors and their ability to sell or resell the proposed equipment.

As a condition of responsiveness and eligibility for award, the Offeror **shall submit current OEM authorization documentation** with its proposal. This documentation must demonstrate that the Offeror is an **authorized reseller, distributor, and/or service provider** for all drug#testing laboratory instruments, analyzers, and related equipment proposed. Failure to submit this documentation with the proposal may result in the proposal being deemed ineligible for award.

L.3.1.3 - Reagents: The contractor shall provide the completed Attachment 4 - Equipment & Reagent Requirements. Identify the required Liquid ready Reagent which shall be accompanied by the "Package Insert" in PDF form. The offeror shall highlight the specified section to indicate the location of the **liquid ready reagents** ability to meet the requirement as stated in Section C - Statement of Work, C.5.5.1 Reagent Chart. If reagent support is offered by a subcontractor, you shall submit the reseller certification and authorization to resell, of the proposed sub-contractor. Sub-Contractor must comply with L.3.1.2 OEM authorization for the equipment at time of proposal submission. Failure to submit this documentation **with the proposal** may result in the proposal being deemed **ineligible for award**.

L.3.1.4 - Key Personnel Resume: The offeror shall submit a resume for both Key Personnel, Project Manager, Field Customer Service Representative, and Data Management System Designee, in accordance with the requirements stated in Section H-3 Key Personnel Requirements. The resumes shall not exceed two (2) pages each.

L.3.1.5 - Ordering Plan: The offeror shall provide an ordering plan of what information is needed to set up accounts for each of the districts that are paying for reagent orders. Although only the on-site laboratories will place orders, any district that is using an on-site or regional lab is responsible for payment out of their own budget for the testing/reagent costs. Therefore, each ordering district will need an account number. The contractor shall provide a copy of the ordering form which shall include the sold to information (district paying for the reagent), as well as the Ship to information (the on-site lab receiving the reagent). Additionally, the ordering form should include the CLINS included within the contract, as well as any consumables necessary for operation of the on-site laboratory. For the payment portion, there needs to be a place to add a purchase order number. The on-site labs can only purchase reagents (as the ship to) if a purchase order number has been supplied to the on-site lab by the ordering district (as the bill to).

L.3.1.6 - The offeror shall provide a completed Attachment 5 – Installation Plan.

L.3.1.7 - Proposal Narrative. The offeror may submit, up to, a ten (10) page narrative supporting all aspects of their proposal.

L.4 - Volume II: Price Volume (Attachment 1 - National Drug Lab Price Sheet)

The Offeror shall submit a completed Attachment 1 - National Drug Lab Price Sheet and submit this documents in Microsoft Excel in an editable format as a separate attachment in the proposal submission. Offerors shall not provide a different attachment for submitting price. Offerors are instructed not to round to more than two decimal places.

L.5 - Volume III: Terms and Conditions

L.5.1 - The Offeror shall submit Volume III and it shall consist of the following items:

1. A cover sheet:

- Unique Entity ID (UEI)
- SAM.Gov registration confirmation
- Name of company
- Company address
- Name of Point of Contact, email address, and telephone number

2. A completed and signed copy of the first page of the RFP, boxes 12,15A, 15B, 16,17 and 18.

3. A signed copy of the first page of each Amendment, if issued.

4. Completed section 6-50, page 33.

5. Completed Judiciary Clause 7-10, page 19-20.

6. Completed section 3-130, page 31.

7. Completed section 3-5, page 32-33.

L.5.2 - Assumptions, Conditions or Exceptions:

The offeror is encouraged to ask questions, as allowed in section L.1.1 - Solicitation Questions, to eliminate assumptions, conditions, or exceptions of this solicitation. If Assumptions, Conditions or Exceptions exist the offeror shall submit under this section, all assumptions (if any), conditions or exceptions upon which the contractual and cost/price part of this proposal is based. If not listed here, the evaluators will assume that none exist, including any which may be buried in the offeror's technical and price proposals. Offerors shall be aware that assumptions, conditions, or exceptions may impact the evaluation of your proposal. The assumptions (if any), conditions or exceptions will be subject to being evaluated under this factor, if applicable. The Judiciary will not incorporate the offeror's proposal by reference and will not accept changes to the requirements in C-1.

L.5.3 - Additional Terms and Conditions:

If the offeror has additional terms and conditions that need to be included in the contract, the offeror shall stipulate a separate section in Volume I of these terms. These terms shall not conflict with the statement of work, or any terms and conditions stated in the solicitation. The Judiciary reserves the right to reject any proposal that includes any assumption or condition that is a deviation from the Judiciary's requirements. The determination of whether an assumption or condition contained in a proposal deviates from the

Judiciary's requirements shall be at the Judiciary's discretion. Any proposal containing exceptions and / or deviations that may be determined unacceptable and may not receive further consideration.

L.6 - Proposal Submission Information

The Offeror is expected to review, understand, and comply with all aspects of this solicitation. Throughout this RFP any mention of Quoters shall be read as Offerors and any mention of quotes shall be read as proposals. The Offeror shall not include embedded files, footnotes, contingencies, or hyperlinks (except for hyperlinking in the Table of Contents, List of Figures/Tables) in any part of their proposal. Each response may consist of both text and pictures or diagrams. It is the responsibility of the Offeror to provide a complete response to all requirements of the solicitation. The Offeror must assume that the Government has no prior knowledge of the Offeror's capabilities and will base its evaluation solely on the information presented in its proposal.

L-6.1 Page Format:

Page size shall be 8.5" x 11". The top, bottom, left and right margins shall be a minimum of 1" each. Font size shall be no less than 11-point and no less than 8-point for drawings, or infographics, tables, figures, captions, and callout boxes. The proposal shall be in a legible font (for example Arial or Times New Roman). Line spacing shall not be less than a single space. Each paragraph shall be separated by at least one blank line. Page numbers, company logos, headers, and footers may be outside the page margins.

All required volume information shall be confined to the appropriate volume.

L-6.2 - Electronic Submission:

The electronic copies of the proposal shall be submitted in a format readable and usable by Microsoft 365 suite (MS Word, MS Excel, PowerPoint); or an unprotected Adobe Acrobat PDF. The use of hyperlinks, except for hyperlinking in the Table of Contents and List of Figures/Tables, and embedded files in the proposal is prohibited, including links to external data stores. The following file extensions are not allowable, and application materials/data submitted with these extensions cannot be considered: .bat, .cmd, .com, .exe, .gif, .rar, .scr, .vbs, .hta, .cpl, .html, .mhtml, and .zip files.

L.6.3 - Validity Period of Proposal

The Offeror's proposal shall remain valid for 180 days from the closing date of this solicitation.

Provision(s) Incorporated By Reference, see Provision B-1

Clause	Title	Fill-ins
2-85A	Evaluation Inclusive of Options	
3-70	Determination of Responsibility	

M-1 Evaluation Criteria

M.1 - An award will be made on the basis of the lowest priced technically acceptable proposal meeting the acceptability standards for non-cost factors in M.2. This procurement is being conducted using the procedures

found in the Guide to Judiciary Policy, Volume 14, § 330 “Standard Competitive Contracting Procedures,” and a single award firm fixed price IDIQ contract will be made to the offeror whose proposal meets the minimum requirements stated in this solicitation.

M.2 - Evaluation Factor

The following evaluation factors and subfactors will be used to evaluate each proposal. The Government will evaluate proposals for technical acceptability. Proposals will not be ranked by factors or subfactors.

Factor 1: Technical - Data Management System

Factor 2: Technical

- Subfactor 1: Performance of Equipment
- Subfactor 2: Ready-to-use liquid Reagents
- Subfactor 3: Key Personnel

Factor 3: Price

M.3 - Evaluation Approach

The Judiciary’s technical evaluation team shall evaluate the technical proposals on an acceptable or unacceptable basis: Factor 1 shall be evaluated first to evaluate the Data Management System. If the Data Management System fails to meet the requirement, it shall receive a rating of unacceptable and the proposal will not receive further consideration and the remaining factors will not be evaluated. If the Data Management System meets the requirement, the offeror’s proposal shall evaluate Factor 2 and Factor 3 assigning one of the ratings described below for each subfactor. Any factor or subfactor evaluated as “Unacceptable” will render the entire proposal unacceptable and, therefore, unawardable. Only those proposals determined to be technically acceptable, either initially or as a result of discussions, will be considered for award. However, the offeror is reminded that the Government reserves the right to award this effort based on the initial proposal, as received, without discussion.

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Table M.3: Technical Ratings

Table M.3(b): Technical Ratings	
RATING	DESCRIPTION
Acceptable	No Deficiencies
Unacceptable	One or more Deficiencies

Deficiency means an aspect of a proposal that fails to meet a requirement. The government will evaluate the proposals for technical acceptability. All offers meeting or exceeding these technical requirements will be evaluated based on price.

The government will evaluate the proposals for technical acceptability. All offers meeting or exceeding these technical requirements will be evaluated based on price.

M.4.1 Factor 1 Technical Acceptability Evaluation.

The proposals shall be evaluated as technically acceptable or technically unacceptable for the following: Data Management System.

Description: This factor evaluates whether the contractor proposed a data management system as set forth in C.6.3 Data Management Systems.

M.4.2 Factor 2 Technical Acceptability Evaluation.

The proposals shall be evaluated against the following technical subfactors:

- Subfactor 1: Performance of Equipment

Description: This subfactor evaluates whether the contractor's proposed equipment meets the testing needs of each on-site laboratory as set forth in C.5.2.1.

- Subfactor 2: Ready-to-use liquid reagents.

Description: This subfactor evaluates the contractor's proposed ready-to-use reagents meet the requirement to test for the specified drug at the specified cutoff levels set forth in C.5.5.1.

- Subfactor 3: Key Personnel (H-3 Key Personnel Requirements)

Description: This subfactor evaluates whether the contractor's proposed Key Personnel meet or exceed the requirements in Section H-3 Key Personnel Requirements.

M.5 - Price Evaluation

Price will be evaluated by summing up the total price of all the CLINs, for all periods, from Attachment 1 - National Drug Lab Price Sheet. The total extended summation price of Ordering Periods 1-7 and 2-90D Optional Ordering Periods 8-10 will yield the total evaluated price for this requirement. CLINs 0002, 0003, 0004, 0005, 1002, 1003, 1004, and 2002, 2003, 2004 shall be evaluated as part of your proposed pricing. The total evaluated price will be the sum of all extended prices in Attachment 1 for all 10 year ordering periods and 6-month option period.

For the total evaluated price, the Government will evaluate and include the option to extend services for up to six months under clause 2-90C. Evaluation of the options to extend the period of performance under clause 2-90C does not obligate the Government to exercise the option periods. In accordance with 2-90C, the option to extend services for an additional six months using Clause 2-90C will be incorporated within the award resulting from this RFP. This optional extension up to six months will be considered to be within the total project scope for purposes of evaluation and award justification.